More Hands, More Time?
Unpacking the Clerk Effect in the Czech Constitutional Court

Petr Hrebenár

Charles University, Faculty of Law

hrebenap@prf.cuni.cz

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Abstract

In August 2003 the plenum of the Czech Constitutional Court raised the permissible clerk capacity of each Justice from one to three full-time equivalents, using the one lever it fully controlled during an appointment deadlock that had left four of its fifteen seats empty. This paper asks what an apex court without discretionary control of its own docket does with capacity of that kind once it is freed. Joining an extract of the Court's clerk contracts, obtained directly from the Court, to the published Czech Constitutional Court Database, it builds a panel of the twenty-six Justices who served between 2001 and 2005 and uses the resolution as an instrument for the capacity a cabinet actually held. The reform added roughly seven tenths of a full-time-equivalent clerk per cabinet. The volume of dispositions rose but imprecisely, the share of output reaching the merits moved by about one percentage point, and admissibility rulings grew some 2,674 characters longer. The added capacity was absorbed at the admissibility gate.

Keywords: judicial clerks; judicial capacity; constitutional courts; instrumental variables; Czech Constitutional Court; gatekeeping; empirical legal studies.

Note on AI use. This draft was adapted from the author's master's thesis with the assistance of AI tools (Claude), used to convert the LaTeX source into a single conference paper, to remove the faculty template's front matter, to relocate part of the institutional background into an appendix, and to draft the abstract. The data, the analysis, the argument and the conclusions are the author's own.

Introduction

It is the year 2003, and in March Václav Klaus takes office as President of the Czech Republic. Besides the newly established Supreme Administrative Court, which is drawing the *crème de la crème* of the Czech legal profession, he inherits the task of filling the bench of the Constitutional Court, hereafter the CCC or the Court. Eleven of the fifteen Justices are due to be replaced within the year, eight of them in a single summer. The Senate rejects several of the President's nominees, and by August four seats remain empty. The Court becomes the child of quarrelling parents. The plenum needs ten Justices to be quorate, so the Court is working at its bare minimum, the vacancies threaten the composition of the three-member chambers, and all of this arrives at an institution whose annual intake of cases has grown three and a half times over the preceding decade.

The Court could respond in one of three ways, and only one of them lay within its own power. A legislative tightening of admissibility and an enlargement of the bench both demanded action by the very institutions whose deadlock had produced the crisis. Staffing did not. On 28 August 2003 the plenum adopted Resolution No. Org. 11/03-3, effective 1 September, raising the permissible clerk capacity of each Justice to three full-time equivalents. The Constitutional Court Act, hereafter the CCA, guarantees each Justice at least one assistant and says nothing about a maximum, so no statute had to be amended and no political actor had to agree. In more than twenty years since, no one has publicly evaluated what that decision produced.

This paper does so. By doing so, it addresses a recognized gap in the literature. While comparative scholarship has repeatedly observed that judicial assistants are a near-universal feature of modern courts, their impact remains severely understudied outside the United States (Sanders 2024). An empirical evaluation of a non-American clerk system is therefore a contribution in its own right. Beyond the setting, it offers a causal estimate of a staffing reform, and it identifies the margin at which the added capacity is absorbed, which speaks to the broader question of what judges do with the room that relief creates. The answer, however, is less obvious than the question makes it look. It is not clear in advance what a Justice actually does with a larger cabinet, and the theoretical scholarship on judicial behaviour gives two opposed answers.

The first holds that judicial effort is costly and that a manageable docket is something a judge values for its own sake. On this reading, a Justice relieved of pressure converts the relief into throughput and comfort. The queue gets shorter, the work does not get deeper, and the composition of what the Court

produces stays exactly as it was (Posner 1993; Epstein 2013). The second holds the opposite. Judges are intrinsically motivated to do the job well, and a binding caseload constraint suppresses the quality they would otherwise supply rather than revealing a taste for minimal effort (Engel and Zhurakhovska 2017). On this reading, relaxing the constraint releases the suppressed quality, and the evidence from a quasi-random caseload reduction in the Israeli judiciary is that judges given room reinvested it in the cases rather than coasting on it (Engel and Weinshall 2020).

One clarification about the treatment is needed before the two accounts can be brought to bear. The resolution added no Justices and removed no cases from any docket. It added support staff who hold little to no formal decisional power of any kind. What the reform changed is therefore not the size of the bench but the division of labour inside each cabinet. The two accounts still apply, because clerk labour is convertible into the Justice's time, and time is the currency in which both accounts trade. What the empirical analysis observes is where that freed time surfaces, a change at particular margins of the cabinet's output rather than a change in the number of Justices deciding cases.

The Czech setting sharpens the disagreement. A Justice of the Constitutional Court is appointed for ten years, and while the Constitution does not expressly bar a second term, Czech scholarship is close to unanimous that none should be served (see Smekal et al. 2021; Kosař and Vyhnánek 2020; Ondřejková 2016; Kühn and Kysela 2006). Although political practice has at times diverged from this academic stance, reappointment has remained exceptional and highly contested rather than an institutionalized career path. For the Justices observed here, the baseline working assumption was a single term. With no higher court to be promoted to and no reliable prospect of reappointment to protect, the external career incentives that ordinarily discipline judicial effort were exceptionally weak.

The disagreement matters beyond the motivations of any individual Justice. Coan (2012) argues that judicial capacity, meaning a court's sheer ability to handle volume, shapes the substance of constitutional law itself, because a court that cannot decide everything carefully will economise doctrinally. Where a court holds no discretionary control over its own docket, and the Czech constitutional complaint is available as of right, the gap between demand and capacity has to be managed inside the institution rather than at the door (Fontana 2011). A decision that triples the permissible size of a cabinet is, on that view, a decision about what kind of constitutional review the Court can afford to deliver.

This paper asks how a constitutional court allocates additional capacity across

its docket when it lacks discretionary control over case inflow.

To answer this question, I break the Court's output into three testable dimensions. Specifically, I examine whether adding clerk capacity to a Justice's cabinet leads to:

1. **An increase in volume.** Do Justices resolve more cases overall?
2. **A shift in composition.** Does a higher proportion of their output consist of substantive decisions on the merits, rather than dismissals at the admissibility gate?
3. **A change in effort.** Do Justices write a longer, more detailed ruling, and take longer over it?

The two accounts differ above all on the second dimension, the share of output that reaches the merits. Docket comfort leaves that share where it was, while reinvestment raises it, so it is composition rather than sheer volume that tells the two apart. The third dimension asks something neither account foresees. It asks whether the added capacity is absorbed inside the disposition, at the screening and drafting stage, rather than in the count or the mix of dispositions. The three are not rivals of which only one can hold, since a cabinet can spend freed capacity on all three margins at once. Chapter 2 develops all three of these destinations into formal, testable hypotheses.

Answering these questions requires linking what each cabinet had to what each cabinet produced, and no existing source does that. The published Czech Constitutional Court Database (Paulík 2024) records every decision the Court has issued since 1993 but is organised around decisions rather than around the people who prepare them. The Court's clerk staffing records are not public in the necessary detail. I therefore obtained an extract of the clerk contracts of the Justices directly from the Court, each carrying a start date, an end date and a full-time-equivalent fraction, and joined it to the published decision data through the identity of the Justice. The result is a panel of Justice-periods in which the capacity active in a cabinet sits beside the dispositions for which that Justice was rapporteur.

The empirical problem is that capacity is chosen rather than assigned. A Justice who hires a second and a third clerk may be the Justice with the heaviest docket, the greatest ambition, or the most demanding working method, so simply correlating clerks with cases decided would measure the Justice as much as the clerk. The 2003 resolution is what makes the question answerable. It arrived at a date no individual Justice controlled, for reasons that had to do with the

appointment deadlock rather than with any cabinet's performance, and it changed only what a Justice was permitted to do. I therefore use the reform as an instrument for cabinet capacity, estimating the models on both a quarterly and a monthly panel of the twenty-six Justices who served between 2001 and 2005, with Justice fixed effects to hold constant everything durable about the individual Justice and standard errors clustered by Justice. Chapter 3 sets this out in full, including what the design cannot do.

The answer is that the reform reshaped what cabinets produced without delivering either of the outcomes the two accounts predict. While the volume of closed cases rose, it did so imprecisely; the instrumental variable estimates remain too imprecise to put forward as a clear finding, and the stock of pending cases did not demonstrably move. The mix of dispositions did tilt towards the merits, which is the direction reinvestment predicts, but only by roughly a single percentage point rather than by the substantial redirection that account describes. What moved decisively was the admissibility ruling itself, which grew by roughly two fifths in length, while the time from filing to an admissibility decision rose rather than fell. The added capacity was absorbed at the admissibility stage, inside the screening dispositions the cabinets already produced. Neither docket comfort nor reinvestment accounts for this on its own, and the pattern sits closest to the third destination. In doing so, it puts the reform's implicit promise of buying "more time" back as a question, showing that added hands may simply create more elaborate screening rather than faster justice.

The paper proceeds as follows. Chapter 1 describes the Constitutional Court: the bench and how it is appointed, the forms in which the Court decides, what a judicial clerk is, what clerks do inside a Justice's cabinet, how the caseload grew, and how the crisis of 2003 produced the resolution studied here. Chapter 2 turns to theory, introducing the study of judicial behaviour and developing the hypotheses from the two accounts of how freed capacity is allocated. Chapter 3 presents the data, the construction of the panel, the definition of variables, and the identification strategy. Chapter 4 reports the results, taking the first stage first and then each hypothesis in turn, and closes with the robustness of the estimates. Chapter 5 discusses what the findings mean, states candidly what the design cannot support, and proposes the further research the limitations point to. A Conclusion closes. The Court's position within the Czech constitutional order is set out in Appendix A.

1. Institutional Setting

The chapter proceeds in two parts. The first introduces the Court and its bench, describes the forms in which it decides, and documents the growth of the Court's caseload. The second introduces the judicial clerk as an institution, examines what clerks do inside a Justice's cabinet, and closes with the appointment crisis of 2003 and the plenary resolution that answered it, which is the subject of the entire paper.

1.1 The Court and its bench

The CCC stands outside the ordinary court hierarchy and is not an instance of appeal above the two supreme courts. It is a specialized body of constitutional review in the continental tradition (Pouperová 2024). Its place within the Czech constitutional order, the constitutional and statutory basis of its jurisdiction and its full catalogue of powers are set out in Appendix A; for present purposes only one of those powers matters.

The constitutional complaint, in Czech *ústavní stížnost*, deserves separate mention because it dominates the Court's caseload in volume. It is the remedy of last resort for the protection of individual fundamental rights and freedoms, available to any person who claims that a final decision or other intervention of a public authority violated their constitutionally guaranteed rights. Every later chapter of this paper deals primarily with this agenda, because it is where the Court's capacity constraint bites.

The CCC consists of fifteen Justices, including a President of the Court and two Vice Presidents. Justices are appointed by the President of the Republic subject to the consent of the Senate and serve a term of ten years. The scholarship on how that appointment process works in its present-day form is discussed in Appendix A; what matters here is the pattern the process has produced over time.

The scholarly discourse on the CCC frequently employs the concept of generations. The framework stems from two facts, the Court's relative youth, having been established in 1993, and the pattern of presidential re-election. Presidents in Czechia have historically served two consecutive five-year terms, so each has been in office long enough to appoint the entire bench. It is therefore common to identify the Court either by the appointing president, which yields labels such as the Havel, Klaus, Zeman, and now Pavel Courts, or by chronological sequence as the first, second, third, and fourth generations. The empirical window of this paper covers the transition from the first to the second generation. Figure 1.1 sets

out those generations and the service of every Justice who has sat on the Court.

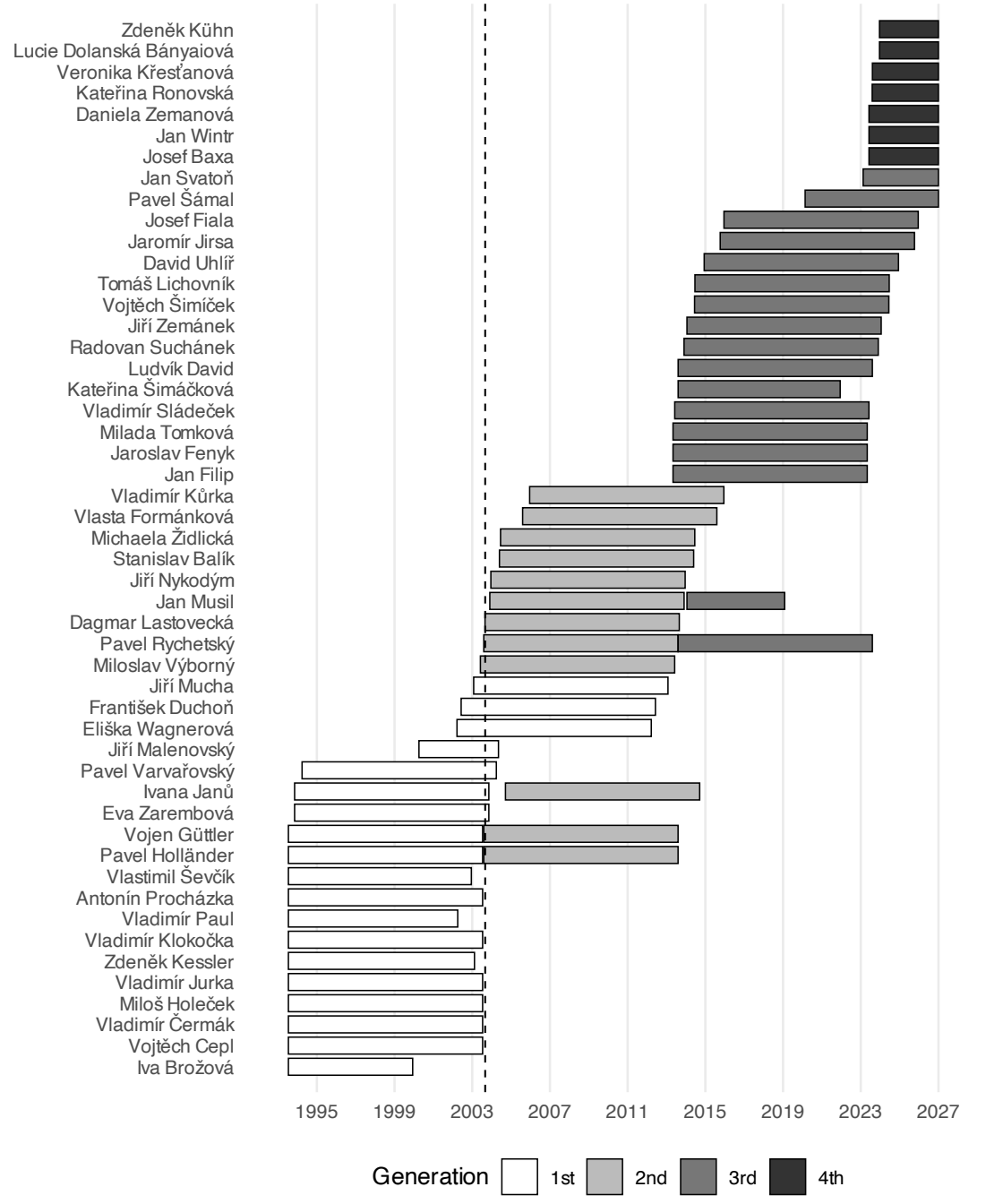
Although the CCR does not expressly prohibit reappointment (Pouperová 2024), there is a strong consensus in Czech academia that Justices should not serve subsequent terms (see Smekal et al. 2021; Kosař and Vyhnánek 2020; Ondřejková 2016; Kühn and Kysela 2006), or that if reappointment is admitted at all, a gap of at least five years should separate the terms (Šimíček 2016). However, as Figure 1.1 shows, practice does otherwise. Namely Pavel Höllander, Vojen Güttler, Ivana Janů, Pavel Rychetský or the most recent one so far Jan Musil in 2014 served for two terms. But, as of now, the last decade seems to respect outlined academic conclusions which raises the questionability of retaining institutional memory within the bench.

The non-renewable mandate has a cost that Czech doctrine has so far left undiscussed, namely institutional memory. A bench that turns over completely every ten years cannot carry its accumulated internal knowledge in the persons of its Justices, so that knowledge, if it survives at all, survives in the permanent staff (Mascini and N. Holvast 2024). The Court of Justice of the European Union offers the standard illustration, since its *référendaires* often serve for decades and function as carriers of institutional memory beside judges who rotate (Cohen 2017; Kenney 2000). Similar conclusions have been drawn for clerks at the magistrates' courts of England and Wales (Darbyshire 1984).

1.2 The forms of the Court's decisions

Because every later chapter counts the Court's decisions, the forms in which those decisions come must be introduced here. The Court decides in three forms. The *nález*, a judgment, is the form of a decision on the merits. The *usnesení*, a resolution, is the form of procedural decisions and above all the instrument by which a complaint is rejected at the admissibility stage without a decision on the merits. The *stanovisko pléna*, an opinion of the plenum, unifies the legal opinions of the Court when a chamber wishes to depart from an earlier view. Decisions issue from one of two formations, either a chamber of three Justices or the plenum of the full Court, and Table 1.1 summarizes which form can issue from which formation. When the empirical chapters speak of admissibility output and merits output, they refer to this distinction between the *usnesení* and the *nález*.

Figure 1.1: Terms of service of the Justices of the Constitutional Court, by generation



Note: Each bar covers one Justice's term of service and shading distinguishes the four generations. The dashed line marks 1 September 2003, when the reform studied in this paper took effect.
Source: (Paulík 2024), author's own processing.

Table 1.1: Forms of the Court's decisions and the formations that issue them

Form	**Content**	**Chamber (three Justices)**	**Plenum**
Nález	Judgment on the merits	yes	yes
Usnesení	Resolution, including rejections on admissibility grounds	yes	yes
Stanovisko pléna	Opinion of the plenum unifying divergent chamber case law	no	yes

Source: Author's own processing.

1.3 Caseload and the backlog problem

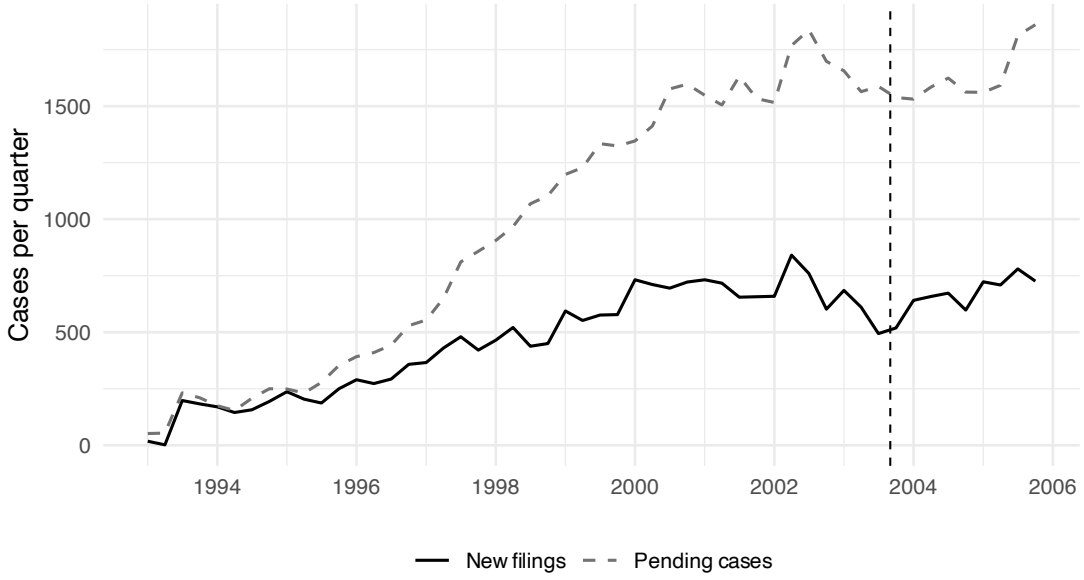
The Court's caseload grew steeply throughout its first decade. In 1993, its first and partial year of operation, the Court received 401 filings, although only twenty of those arrived in the first half of the year, so 1993 is a poor baseline. In 1994, the first full year, it received 666. By 2003 the annual figure had reached 2,309, roughly three and a half times the 1994 volume. The stock of pending cases grew in step, from 210 at the end of 1993 to 1,538 at the end of 2003. The docket was dominated throughout by constitutional complaints. The strain was visible from inside the institution early on, since a sitting Justice publicly reflected on the Court's operation and the case for legislative adjustment already in its first decade (Höllander 1999). Figure 1.2 documents the development of filings and pending cases over the period relevant to this paper.

Volume is structurally hard for this Court in a way it is not for every apex court. The constitutional complaint is a remedy of last resort available as of right to any individual, and the Court cannot decline a properly filed complaint the way a certiorari court declines a petition. Comparative scholarship treats discretionary docket control as one of the most consequential institutional advantages a constitutional court can hold, precisely because a court that sets its own agenda can match demand to capacity (Fontana 2011). The CCC lacks that advantage. Whatever gap opens between the inflow of cases and the capacity to decide them must therefore be managed inside the Court, in the way cases are processed, rather than at a discretionary gate of admission.

The resulting backlog is not an accounting inconvenience but a threat to the remedy itself. A constitutional complaint protects fundamental rights only if it arrives in time to matter, so a delayed constitutional remedy is a weakened one.[1]

1. Echoing the famous legal maxim, often attributed to William E. Gladstone, that *justice*

Figure 1.2: Case filings and pending cases at the Constitutional Court, 1993 to 2005



Note: Filings are shown as a solid line and the stock of pending cases as a dashed line. The pending series includes the cases carried over from 1992. The dashed vertical line marks 1 September 2003.
Source: (Paulík 2024), author's own processing.

The empirical literature accordingly treats the time needed to resolve a case as a fundamental component of time efficiency, which serves as a central measure of overall court performance (Yeung, Ovádek, and Lampach 2022). The empirical chapters therefore measure case duration to capture the timeliness of the remedy, rather than to evaluate judicial effort.

1.4 Judicial clerks and the reform of 2003

1.4.1 The clerk as an institution

Sanders (2020) presents a comparative typology in which judicial assistants across Europe fall into three types, providing a useful framework to contextualize the role of assistants at the CCC. *Scribes* are potentially permanent staff, as in the Netherlands or Switzerland. *Interns* are recent law graduates who assist for a limited period early in their careers, as in the United Kingdom. *Seconded judges*, as in Germany, are sitting judges who spend limited time at a higher court to gain experience for future promotion.

delayed is justice denied.

Sanders (2020) separately distinguishes three ways of organizing assistants. In the cabinet system an assistant is assigned to a specific judge. In the pool system assistants serve the entire court. In the panel system they support a particular division or chamber. The same study grades the duties of assistants on a scale of involvement that runs from research only, as in the United Kingdom, through complete drafting of decisions, as in Switzerland and the Netherlands, to nearly independent work on small cases, as in Slovenia. The three classifications are independent of one another rather than paired, so a court may in principle combine any type of assistant with any form of organization and any level of duties. Table 1.2 sets them out and places the CCC in each.

Table 1.2: The three dimensions of the comparative typology of judicial assistants

Dimension	**Comparative Models**		
Type of assistant	Scribe, potentially permanent (NL, CH)	Intern, early career (UK)	Seconded judge (DE)
Organization	Cabinet, assigned to one judge	Pool, serving the whole court	Panel, serving a division
Duties	Research only (UK)	Drafting of decisions (NL, CH)	Near independent work on small cases (SI)

Note: Shaded cells mark the values that describe the CCC. The three dimensions are independent classifications rather than a single typology, so the shaded cells fall in different columns.
Source: (Sanders 2020), author's own processing.

Within this typology the clerk at the CCC works in the cabinet system as a scribe. Each clerk works for the one Justice who decided to appoint them, and the position is designed as potentially permanent employment rather than a training rotation. The placement has a substantive implication. Because the clerk is the Justice's own appointee, the relationship is personal rather than institutional, and the composition of each cabinet reflects the hiring choices of its Justice rather than a court-wide personnel policy. Comparative accounts of the internal procedure of European constitutional courts describe the cabinet arrangement as one of the standard models (Kelemen 2016).

The statutory foundation is thin. Under section 8(1) CCA each Justice must have at least one clerk, in Czech *asistent soudce*, the assistant of a Justice. The statute thereby sets a floor of one clerk per Justice and says remarkably little else about the position, which mirrors the comparative observation that the duties of judicial assistants are barely mentioned in legislation anywhere (Holvast 2016).

The clerk's tenure is tied to the tenure of the appointing Justice. When the

Justice's mandate ends, the clerk's appointment ends with it, subject to a notice period of up to three months depending on the clerk's length of service under section 9(3)(b) and (4) CCA. The dependence was harsher still in the Court's early period, when the death of a Justice in office terminated the appointments of the entire cabinet with immediate effect. The later introduction of the notice period softened that dependence without severing it.

The statutory requirements for holding the position have evolved, and Table 1.3 summarizes their development. The original 1993 requirements included a completed legal education, five years of prior legal experience, integrity, and legal capacity. The five-year experience requirement was abolished in 1998. Before its abolition the requirement produced a workaround, since some Justices employed young lawyers who could not yet satisfy it as consultants, in substance unofficial clerks without the statutory title.[2] The most recent change came in 2013. It strengthened the clerks' job security, a protection assistants had lacked in the Court's first two decades.

Table 1.3: Development of legal requirements for judicial clerks arising from s. 9 CCA

Requirement	**Introduced**	**In force until**
Law school graduate	1993	present
5 years prior experience	1993	1998
Integrity	1993	present
Legal capacity	1993	present
Time-limited tenure	2013	present

Source: Author's own processing.

The composition of the clerk corps also changed alongside the rules, since the share of senior academics among clerks declined across the Court's successive generations while the share of recent graduates and doctoral candidates grew (Paulík 2024). That drift cuts against the statutory design, which treats clerks as scribes, and it matters here because the two movements pull in opposite directions on the risk that Holvast (2016) identifies. The 2003 reform made cabinets larger, which raises that risk, while the corps was at the same time becoming more junior, which lowers it.

The Czech experience with clerk capacity is not an isolated case. The clerk units of the Norwegian Supreme Court and the largest Norwegian courts of appeal were built purposefully, and the stated reason for hiring clerks there was initially the solution of backlog, shifting only later toward quality assurance as the units

2. The Court's official record of clerks lists those formally appointed under section 8(1) CCA, available on its website. Persons employed as consultants do not appear in it, which is a limitation for any research based on the official record.

matured (Grendstad et al. 2020). The Norwegian case is the direct comparator for what happened in Czechia in 2003, a court answering a volume problem by adding assistants rather than judges, and it shows that such an answer can reshape the institution well beyond the original bottleneck.

1.4.2 What clerks do

Under the CCA a clerk holds no decisional power of any kind. What the statute contemplates is the Justice's power to entrust work to the assistant, in Czech to give the assistant a *pověření*, an authorization. Delegation is therefore a choice made by each Justice rather than an attribute of the position, and the extent of that choice is where the empirical interest lies.

The best available evidence on delegation in practice is qualitative. Hořeňovský and Chmel (2015) interviewed Justices and clerks of the CCC and reconstructed how the preparation of decisions actually proceeds. Their central finding is that delegation varies sharply from cabinet to cabinet. Some Justices assign cases to clerks with full freedom as to the proposed outcome. Others direct the outcome in advance, in the interviewees' vivid description by attaching a yellow post-it with the desired ruling. Still others maintain an internal system of peer review in which clerks comment on one another's drafts before the Justice sees them.

The unit that produces dispositions is accordingly the cabinet, the Justice together with the clerks. At the admissibility stage the gatekeeper is the judge rapporteur together with that cabinet, and Hořeňovský and Chmel (2015, 304) document that the preparation of dismissals on procedural grounds under sections 41 to 43 CCA is work that Justices entrust to their assistants to widely varying degrees. The overwhelming majority of constitutional complaints ends at this gate, rejected as inadmissible or manifestly unfounded by *usnesení* without a decision on the merits. Across the whole history of the Court, 91.3 percent of all decided cases and 92.1 percent of constitutional complaints are disposed of on admissibility grounds, and the share has remained stable between 88 and 94 percent year on year.[3] This is the single most important fact about what the Court does with its docket. How much of this screening work any individual clerk performs is a matter of the Justice's own practice and is not observable in any record. What the 2003 resolution changed was the quantity of the input available to each cabinet, and the cabinet is therefore the coherent unit at which to measure output.

The gate is not a neutral conveyor. The Czech literature on agenda setting shows that procedural screening shapes which cases the Court ever reaches.

3. Author's own calculation from (Paulík 2024). The same calculation is reported for the estimation window in Chapter 3.

Papoušková (2018) analyzes how the Court's agenda is set in practice, and Benák (2018) asks directly whether the Justices have room for strategic case selection, with both finding that procedural grounds such as missing documentation or late submission give the screening stage genuine influence over outcomes. Within the deciding formation the judge rapporteur drives the result far more than the panel's composition does, which concentrates the screening function in the rapporteur's cabinet (Chmel 2017).

Mascini and N. L. Holvast (2020) surveyed eighty Dutch administrative law judges and found that a judge's managerial role orientation, trust, and positive risk-benefit perceptions all increase an assistant's influence on adjudication. By contrast, they found no correlation between a judge's subjective sense of time pressure and the assistant's perceived contribution to the final case outcome. While this finding initially appears to complicate the argument of this paper, the contradiction is limited. Mascini and Holvast measure the assistant's sway over what is decided, whereas this paper focuses on the volume of work handed over. A Justice facing high time pressure might delegate a massive amount of drafting without letting the assistant dictate the final ruling. Therefore, the Dutch study refines the mechanism rather than defeating it: the link between pressure and delegation cannot simply be assumed in the Czech setting.

The international evidence nevertheless shows that assistants matter for output. Quantitative work on the Supreme Court of the United States finds that clerks exert modest influence on voting overall but substantial influence in salient and closely divided cases (Bonica et al. 2019). The historical study of certiorari memoranda under Chief Justice Vinson established clerk involvement at the admission stage as an object of study decades ago, while carefully noting that agreement between a clerk's recommendation and a Justice's vote does not by itself prove influence (Brenner and Palmer 1990). Justices delegate precisely at the screening and drafting stages in order to free their own time, which is the mechanism through which added clerk capacity can change what a cabinet produces (Kromphardt 2015). Comparative analysis finds that the risk of assistants influencing adjudication rises when they are numerous, qualified, and experienced (Holvast 2016).

Although Czech legal scholarship has begun to see early empirical work utilizing newly curated datasets and large-scale survey instruments (see Paulík 2024; Urbániková, Havelková, and Kosař 2024; Vartazaryan 2022), it has rarely applied statistical analysis to evaluate case volumes and internal court workflows. There are notable quantitative exceptions—such as empirical evaluations of how simplified criminal procedures affect case durations and conviction rates—but these studies focus on the systemic impacts of statutory reforms rather than on internal court

capacity or personnel delegation (see Dusek and Montag 2015). Indeed, the empirical literature on judicial assistants remains thin even internationally (Sanders and Holvast 2020). Domestically, studies exploring the Court's internal dynamics have instead relied primarily on qualitative interviews, agenda-setting frameworks, or broader inquiries into extra-legal influences on decision-making (Smekal et al. 2021). Complementary strands examine societal perceptions and institutional reputation management (Kysela and Ondřejková 2012; Chmel 2020; Hrebenár 2022), or offer biographical portraits of individual Justices (Kysela, Blažková, and Chmel 2015). What this literature still lacks is a systematic, quantitative assessment of case output and task delegation across judicial cabinets. That empirical gap is the one this paper enters.

1.4.3 The staffing crisis of 2003 and the Court's response

In 2003 the pressure of the caseload met a crisis of the bench. The ten-year terms of the Justices appointed in 1993 expired together, so eleven of the fifteen seats were due for replacement within a single year, and eight of those terms ended on the same day, 15 July 2003. President Klaus nominated candidates, but the Senate rejected several of them.[4] The contemporaneous comparative debate on how constitutional courts should be staffed was itself a product of this deadlock (Kysela and Kühn 2003). By August 2003 four seats remained empty.

The vacancies were not merely symbolic. The CCA requires the presence of ten Justices for the plenum to sit, so the Court operated at its bare quorum, and with only ten sitting Justices the four three-member chambers could not all be maintained at full strength and dockets had to be redistributed. A court whose caseload was growing was simultaneously losing the hands that decided the cases, and no one inside the Court could predict when the political institutions would refill the empty seats.

In that situation, the Court could not rely on legislative filters or a prompt expansion of the bench, as both required action from the deadlocked political institutions. Instead, it used the one capacity lever fully within its own control. On 28 August 2003, the plenum adopted Resolution No. Org. 11/03-3 (effective 1 September 2003), raising the permissible clerk capacity to three full-time equivalents per Justice. Because Section 8(1) CCA establishes only a statutory floor of one assistant without setting a ceiling, the plenum could act autonomously without legislative amendment.

4. The political context of these rejections has been documented in detail (Binhack 2024).

2. Judicial capacity and the allocation of judicial effort

When a judge is granted additional labor capacity, that relief does not dictate its own use. Because judicial output is not tied to financial compensation or promotion incentives, a Justice who gains assistant capacity must decide how to allocate that freed time across the docket. This chapter develops a theoretical framework to analyze where that added capacity is absorbed and what observable signatures each choice leaves in the Court's output.

The theoretical literature suggests three distinct destinations for this freed capacity. First, under *docket comfort*, the Justice converts relief into throughput, prioritizing admissibility screening to minimize backlog pressure. Second, under *reinvestment*, intrinsic motivation leads the Justice to shift effort toward substantive review, increasing the share of decisions on the merits. Third, under *intensity at the gate*, the added labor is absorbed within the preparation of individual procedural rulings, increasing their textual depth without altering the case count or the overall composition of output.

The chapter proceeds as follows. Section 2.1 introduces the relevant models of judicial behavior, Section 2.2 conceptualizes capacity as an object of study, Section 2.3 outlines the allocation mechanism, Section 2.4 details the core assumptions of the framework, and Section 2.5 translates each destination into a formal, testable prediction.

2.1 Models of judicial behavior

Empirical scholarship conventionally organizes judicial decision-making into several distinct paradigms, spanning traditional legalism, attitudinal politics, strategic bargaining, labor-market choices, and cognitive heuristics (see Epstein et al. 2024). The vast majority of these frameworks—most notably the attitudinal and strategic traditions—are designed to explain the *direction* of judicial decisions, such as ideological voting or inter-institutional bargaining. This paper addresses a question logically prior to direction: *allocation*. Regardless of whether an apex judge is guided by doctrine, policy goals, or institutional strategy, every Justice operates under a finite working day and a non-discretionary obligation to dispose of incoming complaints. The allocation of labor capacity across that docket is therefore an institutional problem of effort, throughput, and output composition rather than political alignment.

The framework developed here synthesizes three distinct traditions from this taxonomy. First, from *legalism and professional norms* (**morell2024**), it takes the norm of individualized, reasoned adjudication—the institutional demand that prevents constitutional courts from absorbing volume like administrative agencies and ensures that capacity constraints genuinely bind (see Coan 2012). Second, from the *labor market model* of judging (**epstein2023**; see Posner 1993; Epstein 2013), it adopts the premise that judges maximize utility over effort, leisure, and craft satisfaction under material constraints, using cabinet support to manage heavy caseloads. Finally, insights from *cognitive and heuristic approaches* (**braman2023**; see Teichman and Zamir 2021) explain why severe docket pressure forces economizing routines at the admissibility gate. Shifting the analytical focus from political direction to labor allocation allows capacity to be conceptualized as an institutional resource in its own right, as developed in the next section.

2.2 Capacity as an object of study

The number of people working in a chamber may look like an administrative detail, but the strongest available argument treats it as a constitutional question. Coan (2012) argues that judicial capacity, meaning the judiciary's ability to handle volume, significantly shapes the substance of constitutional law itself. Judicial capacity cannot expand the way the capacity of an administrative agency can, because the judiciary is hierarchical and because judicial norms demand reasoned and individualized treatment of every case. In domains that are simultaneously high stakes and high volume, the constraint therefore forces doctrinal economizing, and courts respond either by adopting categorical rules that decide many cases at once or by deferring to the political process and declining to decide at all. Coan (2012) concludes that capacity deserves a place in constitutional theory beside judicial competence and judicial independence. If that is right, then a decision that triples the permissible size of a cabinet is a decision about what kind of constitutional law the Court can afford to make, not a payroll adjustment.

Docket control is how most apex courts manage the gap between the demand for adjudication and the capacity to supply it. Fontana (2011) argues that the power to decline to hear a case contributes materially to the success of constitutional courts. Indeed, little in institutional design matters more for a judicial branch than the control it holds over its own docket. A court that sets its own agenda can time its interventions, avoiding an issue until the political community is ready for it, can steer clear of excessive political conflict, and can match its workload to its resources (Fontana 2011; Smith 1975). The value of that argument for this paper lies in its contrapositive. Chapter 1 established that the constitutional complaint

is available as of right, so the Court cannot decline a properly filed case. On Fontana's account this is a structural disadvantage, and it means the gap between demand and capacity must be managed somewhere other than at a discretionary gate of admission. In practice the Court manages it at the procedural gate of sections 41 to 43 CCA.

It does not follow that anyone below the bench controls that gate. Decisional power at the gate belongs to the judge rapporteur, the Justice may entrust preparatory work to the assistants, and the extent of that delegation varies across cabinets in ways no outside observer can measure (see Hořeňovský and Chmel 2015). The unit that manages the gap between demand and capacity is the cabinet, the Justice together with the assistants working under the Justice's direction, and the composition of the cabinet's output, admissibility dispositions against decisions on the merits, is the observable in which any response to a capacity change must appear. The staffing of the cabinets and the operation of the admissibility gate are therefore not two topics but one, without any assumption about who inside the cabinet does what.

The comparative record shows that such a managed gate is a moving institution rather than a fixed rule. At the CJEU, docket control has developed as an evolving internal practice even though the court formally lacks a discretionary docket (Dyevre, Glavina, and Ovádek 2021). The same literature has established that a procedural disposition is an observable output in its own right, distinct from a judgment on the merits (Šadl et al. 2022). That precedent matters here because, as shown later, the Court's output will be split by the grounds of disposition, and the split is defensible only if an admissibility rejection is a genuine unit of production rather than a residual category. The distinction also matters beyond measurement, because a court that answers pressure by expanding the procedural category is changing what applicants receive. Not only how fast they receive it, which is Coan's point about capacity shaping substance restated at the level of a single docket.

Capacity is also an object of causal study rather than only of theory. Yang (2016) exploits variation in the number and timing of vacancies on the United States federal district courts, using judge deaths and pension eligibility as sources of exogenous variation, and finds that when a court's capacity falls, prosecutors decline and dismiss more cases, while the prosecutions that remain end more often in guilty pleas and less often in incarceration. Its mechanism is the mirror image of the one studied here, since capacity in her setting falls rather than rises and the constraint bites at the screening stage rather than at the decision stage, with prosecutors adjusting before the courthouse door the way the cabinets of the CCC adjust at the admissibility gate.

2.3 The proposed mechanism

The 2003 resolution expanded the labor available to a cabinet without altering case inflow, applicable law, or formal decisional authority.[1] A Justice utilizing this capacity must therefore decide how to allocate that freed time across the docket—a choice concerning the volume and composition of output rather than case outcomes. This freed labor can be directed toward three distinct margins: accelerating throughput, expanding merits review, or increasing the textual depth of individual dispositions. While the theoretical accounts below disagree on judicial motivation, they share this underlying allocation problem.

Any theory of how a Justice allocates capacity must begin from what a Justice maximizes, and the answer is not obvious. Judicial pay and tenure are insulated from output, so a Justice who closes many cases and one who closes few draw the same salary and hold the same tenure. Cooter (1983) identified this insulation as the reason economists long struggled to build a theory of public judges at all, and his route around it was to model private judges, who must attract business, and to ask which of their objectives public judges plausibly share. His answer is that prestige among those who know the judge's work stands in for the market signal that salary cannot provide. The currency of judicial effort is therefore reputational rather than financial, and the question becomes what that reputation is earned by, a cleared docket or cases decided well.

The reputational currency matters here with unusual force, because the conventional currencies are nearly absent. A Justice of the Court has reached the end of the career the law offers, with compensation and tenure secure and, by strong scholarly convention, a single term; there is no higher court to be promoted to. Standing before those who watch the Court, and the legacy left at the end of ten years, are what remain, which sharpens the question of what that standing is built from.

The two accounts this section presents give different answers, and the disagreement is best seen through a single shared observation. Courts under heavy load produce output that is short, procedural, and standardized. Both accounts accept the observation and part ways over what it reveals. The first reads it as preference revealed. A judge who values a manageable docket and the time it frees will produce exactly this output when the docket allows nothing better, and will go on producing it when the pressure eases. The second reads it as quality suppressed. A judge who wants to decide cases well but cannot will produce the same output under load and different output once the constraint is relaxed. Under a binding constraint the two readings are observationally equivalent, and a change

1. At least according to available public sources.

in capacity is precisely what separates them.

This framing was introduced by Engel and Weinshall (2020). They present the caseload debate as a spectrum between what they call the managerial and the judicial approach, and this paper adopts that framing. On the managerial reading, clogged courts reflect mismanagement and judicial passivity, and that reading corresponds to theories of judges as partly motivated by leisure, for which they use work of Posner (see 1993). On the judicial reading, the crisis is driven by volume outpacing capacity and judges are predominantly motivated to do the work well (Engel and Weinshall 2020). On the managerial reading, they observe, adding judges to a fixed caseload should simply lead judges to work less, and translated to my setting the same logic says added assistants would buy the Justice comfort rather than the Court substance.

The managerial formulation speaks of adding judges to a fixed caseload, and a clerk is not a judge. An added clerk cannot dispose of a single case alone,[2] so the reform is more precisely a shock to the cabinet's support structure than an enlargement of anything judicial. Any comfort the managerial logic predicts must be taken as the Justice's freed time, and any reinvestment must pass through the tasks the clerk absorbs.

2.3.1 Docket comfort

Posner's account anchors the docket comfort account. His paper offers a positive economic theory of appellate judicial behavior whose premise is that isolating judges from ordinary economic incentives has not made their behavior immune to economic analysis, and he models the judicial utility function by analogy to managers of nonprofit enterprises, to voters, and/or to theatergoers (Posner 1993). While his work is sometimes reduced to the idea that judges seek to maximize leisure, the claim is broader, since he analyzes judges as ordinary rational actors rather than idealized figures and treats leisure as only one element within a complex utility function (Posner 1993).

For the allocation question the relevant argument of the utility function is the taste for a manageable docket. On this account a Justice experiences backlog as a standing burden and treats freed capacity as an opportunity to reach a comfortable state rather than to do more within each case. The labor market model of judicial behavior, developed by Epstein (2013), treats judicial effort as costly and leisure as valued in exactly this way. Behavioral law and economics supports this underlying picture, as judges managing excessive dockets tend to minimize cognitive costs in ways consistent with bounded rationality (see Teichman and Zamir 2021).

2. Unless the clerk has been authorized by their Justice pursuant to Section 41 CCA.

The observable record of courts under pressure is consistent with this economizing. The CJEU increasingly disposes of repetitive and legally undemanding cases by reasoned order instead of judgment, and the study of that practice finds the court uses orders partly to save time (Brekke et al. 2023). A court under load, in other words, shifts output toward the lighter procedural instrument.

2.3.2 Reinvestment

The second account holds that judges are intrinsically motivated to do the job well, and that a binding caseload constraint suppresses the quality judges would otherwise supply rather than revealing a preference for minimal effort. On this reading a judge under crushing load produces short and procedural output because nothing else is feasible, not because nothing else is wanted, so relaxing the constraint should release the suppressed quality. Experimental evidence supports the premise that the judicial office itself motivates (Engel and Zhurakhovska 2017).

The empirical anchor of reinvestment, and the closest existing research design to this paper, is the study by Engel and Weinshall of a quasi-random reduction in caseload in the Israeli judiciary (Engel and Weinshall 2020). In 2012 six senior registrars were appointed in two of the six magistrate's court districts, the choice of districts was made for reasons unrelated to judicial performance, and civil caseload per judge fell substantially in the treated districts (Engel and Weinshall 2020).

Their findings sit at the judicial end of their own spectrum. The caseload reduction significantly affected both the process and the outcomes of decision making, and judges in the relieved courts invested more resources in resolving each case (Engel and Weinshall 2020). The effect worked mainly to the advantage of plaintiffs, who became more likely to win, recovered a larger fraction of their claims, and were more likely to be reimbursed for litigation costs (Engel and Weinshall 2020). Relieved judges, in short, reinvested the slack in the cases rather than coasting on it, which is direct evidence that at least one bench, given room, chose quality over comfort.

The differences between their setting and mine define what this paper adds. Engel and Weinshall (2020) observe a reduction in cases per judge, while I observe an increase in staff per judge, so their treatment removes work and mine adds hands. Their outcome is the intensity of judicial attention within each case, while mine is the composition of the docket across cases.

The Czech institutional setting strengthens the case for intrinsic motivation.

Because Justices conventionally serve a single, non-renewable ten-year term,[3] they face neither prospects of reappointment nor opportunities for further judicial promotion. With conventional external incentives largely absent, observed judicial effort is primarily driven by internal motivation—precisely the behavioral mechanism identified in the experimental literature (Engel and Zhurakhovska 2017). Under these institutional conditions, the judicial reading provides a particularly plausible baseline.

2.3.3 Intensity within the disposition

The two accounts measure the response to added capacity in cases. Docket comfort predicts more of them, reinvestment predicts a different mix of them, and each therefore expects the answer to appear in a count. Capacity, however, need not be spent on a case at all. It can be spent inside a disposition the cabinet was going to produce anyway, so that the same number of complaints is resolved in the same proportions but each resolution takes longer to write and longer to arrive.

There is a specific reason to expect this at the CCC rather than to treat it as a residual possibility. Added capacity enters a cabinet where delegation is already routine, and both the comparative literature and the Czech interview evidence locate routine delegation at the screening and drafting stage rather than at the moment of decision (Kromphardt 2015; Brenner and Palmer 1990; Hořeňovský and Chmel 2015). A clerk who arrives in an existing cabinet does not acquire decisional power. What a clerk can immediately do is prepare and draft. The first place added capacity can therefore land is the text of the disposition the cabinet already writes most of, which at this Court is the admissibility *usnesení*.

The comparative record supports the premise that the procedural instrument is elastic rather than fixed. The study of reasoned orders at the CJEU treats the choice and the content of the lighter instrument as something a court adjusts under pressure (Brekke et al. 2023), and Šadl et al. (2022) establishes the procedural disposition as an output with characteristics of its own. If the instrument can be made lighter when a court is squeezed, it can be made heavier when a court is relieved, and neither account rules that out.

However, two analytical considerations apply here. First, drafting intensity is a distinct behavioral dimension rather than an intermediate compromise between comfort and merits reinvestment. Second, evaluating intensity empirically requires holding disposition types fixed. Because a full decision on the merits inherently demands substantially more time and text than an admissibility rejection, a simple unconditional average would confound drafting intensity with shifts in the case

3. Even though there were exceptions, the general practice seems to be non-renewable as can be seen in Figure 1.1.

mix. To prevent compositional confounding from biasing the estimates, predictions regarding drafting effort must be tested strictly within specific disposition types, as operationalized in Chapter 3.

2.4 Assumptions of the mechanism

The proposed mechanism rests on six core assumptions regarding the internal division of labor, institutional constraints, and the measurement of judicial output. For each assumption, I outline its empirical foundation and the analytical implications should it fail to hold.

First, the cabinet is the production unit. The Justice and the assistants working under the Justice's direction convert filings into dispositions as a single unit, and output is attributable to that unit rather than to any person within it. The ground is the interview evidence that delegation varies sharply from cabinet to cabinet (Hořeňovský and Chmel 2015). If the assumption fails, the effect of an added clerk would have to be traced to particular tasks, which no available record permits.

Second, added capacity is an input and not formal decisional authority. A clerk provides labor for legal research and drafting, while formal decision-making authority remains reserved exclusively to the Justice. Any effect on output therefore operates through the Justice's allocation choice rather than independently of it, making that allocation the central object of study.

Third, the pre-reform constraint was binding. The single full-time clerk limit in place before September 2003 constrained cabinet output, meaning a Justice would have utilized additional labor had it been permitted. If the constraint were non-binding, formally raising the hiring ceiling would induce no behavioral response, leaving all three margins unaffected. This assumption is directly verifiable in the data through the actual uptake of newly authorized positions across cabinets.

Fourth, the admissibility disposition is a unit of output. The *usnesení* rejecting a complaint is a product with characteristics of its own rather than a residue left over once judgments have been counted (see also Šadl et al. 2022; Brekke et al. 2023). Without it the split of output by ground of disposition is not meaningful, and Hypotheses A and B both depend on that split.

Fifth, effort leaves an observable trace. What a cabinet puts into a disposition appears in the length of the written ruling, the textual product of the drafting work a clerk can absorb immediately. The time from filing to decision does not carry this interpretation, because it counts from a date that precedes the cabinet's work on the case and in part the reform itself, mixing effort with queueing and with the mechanical dating bias documented by Engel and Weinshall (2020).

Duration is therefore excluded from the definition of effort and used only where a prediction concerns time itself, as Hypothesis A's claim of speed does.

Finally, intensity is identified only within a disposition type. A decision on the merits is longer and slower than an admissibility rejection by construction, so an average taken across types moves with the mix even when the effort spent on each case is fixed. Every claim about intensity is therefore evaluated within a type.

These assumptions remain agnostic about the underlying judicial motivation. The mechanism is compatible with legalist, attitudinal, and strategic behavior alike, as these accounts disagree on subjective utility rather than on the empirical structure of the allocation trade-off. Ultimately, the research design identifies the destination of the added capacity rather than the private rationale behind its deployment.

2.5 Testable predictions

The allocation choice facing a Justice yields three distinct, non-rival destinations for freed capacity. Each maps onto a testable hypothesis concerning the marginal effect of an additional full-time-equivalent clerk on cabinet output.

The first destination is throughput. If a Justice seeks to minimize backlog pressure, freed labor will be deployed to accelerate case processing at the admissibility gate. This yields the first hypothesis:

Hypothesis A (Docket comfort): *An increase in cabinet clerk capacity increases the total volume of dispositions closed by a cabinet.*

Docket comfort is a claim about where relief is spent, not only about how much a cabinet closes, so it needs to be evaluated as a package. Alongside the volume claim it requires that the composition of output stay where it was, that the stock of pending cases fall, and that proceedings become shorter rather than longer. A rise in the merits share, in the backlog, or in the time to disposition therefore tells against docket comfort even when the count goes up.

The second destination is substantive depth. If a Justice is intrinsically motivated to deliver higher-quality review, added capacity will be used to relax the constraint on complex adjudication. This yields the second hypothesis:

Hypothesis B (Reinvestment): *An increase in cabinet clerk capacity increases the proportion of dispositions decided on the merits.*

The third destination is drafting intensity. If added capacity is absorbed at the stage where tasks are routinely delegated, it will surface in the elaboration of screening decisions. This yields the third hypothesis:

Hypothesis C (Intensity at the gate): *An increase in cabinet clerk capacity increases the textual length of written procedural rulings (usnesení).*

3. Research design

This chapter presents the empirical strategy this paper employs to test the theoretical hypotheses developed above. It describes the data sources and panel construction, defines the dependent and explanatory variables, details the estimation sample and mandate turnover, and specifies the instrumental variable framework alongside the fixed-effects estimation equations.

3.1 Data and the construction of the panel

The analysis joins two sources of very different status. The first is the Czech Constitutional Court Database published by Paulík (2024), which covers every decision of the Court from 1993 to 2023 and supplies case-level metadata, background data on Justices and clerks, and the full texts. From its master table I use the unique decision identifier `doc_id`, the decision date `date_decision`, the form of the decision `type_decision` with its values *nález*, *usnesení*, and *stanovisko pléna*, the classification of the decision by `grounds` into merits, admissibility, and procedural dispositions, the deciding `formation`, the identity of the judge rapporteur through `judge_rapporteur_id`, and the duration variable `length_proceeding`, measured in days from submission to decision. The database is public, documented, and replicable, so every step of the analysis that rests on it can be checked.

The second source are the Court's internal staffing records that are not in such detail publicly available. I obtained them by direct request to the Court, which supplied an extract of the clerk contracts of its Justices, each observation carrying a start date, an end date, and a full-time-equivalent fraction, keyed to the same Justice and clerk identifiers that anchor the published database.

The coverage of the staffing records is the binding limitation of this study. The records run from 2001 to 2005 only. I requested that window because a longer one would have imposed a disproportionate administrative burden on the Court, and what I hold is what the Court was able to supply.

The two sources join through the Justice. Each clerk contract observation carries a `judge_id`, each decision carries a `judge_rapporteur_id`, and the two identifiers refer to the same person, so the capacity active in a cabinet in a period can be placed beside the dispositions for which that Justice was rapporteur in the same period. The join rests on two assumptions. The first is that a disposition is the product of the rapporteur's cabinet since the rapporteur's cabinet prepares the case whatever formation decides it. The second is that the contract dates delimit the capacity actually available, so that a clerk contributes from the start date to

the end date and not otherwise, which ignores leave, illness, and any informal help across cabinets.

The observation period runs from 2001 to 2005, centered on the 1 September 2003 reform. The panel tracks individual Justices at both quarterly and monthly frequencies, capturing all dispositions for which the Justice served as judge rapporteur.

The Justice, rather than the Court, is the unit of the panel. Under the cabinet system every clerk contract attaches to exactly one Justice (unless he serves two masters), so the capacity the resolution added arrived cabinet by cabinet; and the rapporteur field attaches every disposition to one Justice as well, so input and output can be measured for the same unit.[1]

3.2 Measures

This section defines the treatment indicator, capacity measure, dependent variables, and model specifications used in the empirical analysis.

The policy treatment is defined as a binary indicator, D_t, equal to one from 1 September 2003 onwards and zero prior. In the monthly panel, treatment switches on exactly in September 2003. In the quarterly panel, the third quarter of 2003 spans both pre- and post-reform months and is excluded as a mixed period, with treatment switching on in Q4 2003. Cabinet capacity, recorded as `fte_total`, is measured as the sum of active full-time-equivalent clerk contract fractions within a Justice's cabinet during the period.

The primary volume metric, `closed_cases`, counts the total dispositions closed in a period for which the Justice served as judge rapporteur. Following Paulík (2024), this total is partitioned by `grounds` into `admissibility`, `merits`, and `procedural` dispositions. In the Court's practice, this distinction maps almost perfectly onto legal form: merits decisions are virtually all judgments (*nález*), while admissibility and procedural dismissals are resolutions (*usnesení*).

Three additional variables capture process duration, textual intensity, and docket stock:

- `avg_duration` measures the mean disposition time (in calendar days from initial filing to decision) across cases resolved by a cabinet in a given period. Because duration includes queueing time that predates both the reform and the deciding Justice's involvement, it serves to evaluate the speed prediction of docket comfort rather than active judicial effort.

1. The cabinet as the producing unit and the interview evidence of cabinet-level delegation are set out in Section 1.4.

- `avg_chars` measures the mean character count of written rulings issued by the cabinet, serving as the primary proxy for drafting effort.
- `backlog` tracks the total stock of pending cases assigned to a Justice at the end of each period, accounting for existing active files carried over from prior years.

Across all specifications, models include Justice fixed effects (α_i) to absorb time-invariant Justice characteristics such as baseline productivity, legal philosophy, and working habits. Because the reform took effect simultaneously across the entire institution, calendar period fixed effects cannot be estimated without absorbing the common treatment indicator; identification therefore relies on within-Justice variation over time.

3.3 The estimation sample

Table 3.1 sets out the panels. The quarterly panel contains 266 Justice-quarters over nineteen quarters and the monthly panel 833 Justice-months over sixty months, in both cases across the twenty-six Justices, and the table also defines the balanced subsamples to which the identification section returns. Figure 3.1 places every Justice in time and shows the mandate structure of the sample. The effective estimation samples in the regressions that follow are slightly smaller, because staffing or outcome records are missing in boundary periods.

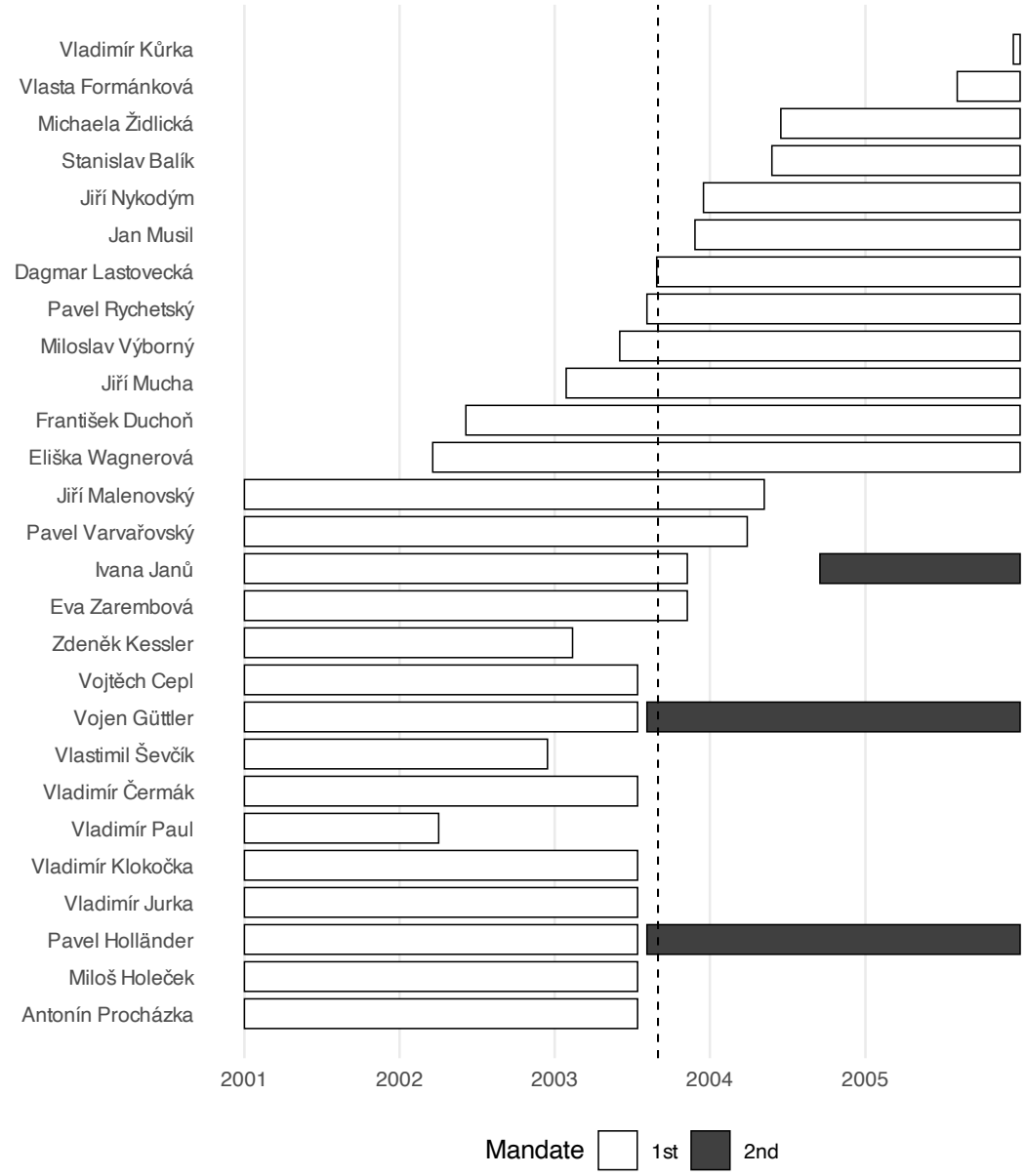
Table 3.1: The panels and their dimensions

Panel	N	Justices	Both sides	Periods
Q_all (quarterly, Q3 2003 excluded)	266	26	9	19
M_all (monthly, no deletion)	833	26	10	60
Q_bal (quarterly, balanced)	127	9	9	19
M_bal (monthly, balanced)	435	10	10	60

Note: Every panel carries both all-formations and chamber-only outcomes; the chamber restriction applies to the decisions counted, not to the Justice-periods retained. "Both sides" refers to observed on both sides that counts Justices present before and after 1 September 2003 with capacity recorded, the only Justices contributing treatment variation once Justice fixed effects are in place.
Source: (Paulík 2024) and the Court's staffing records, author's own processing.

Of the twenty-six Justices, only nine are observed on both sides of the reform. Nine appear only before it and eight only after. The reason is the turnover described above: the outgoing generation had left seven weeks before the resolution took

Figure 3.1: Terms of service of the Justices in the estimation window

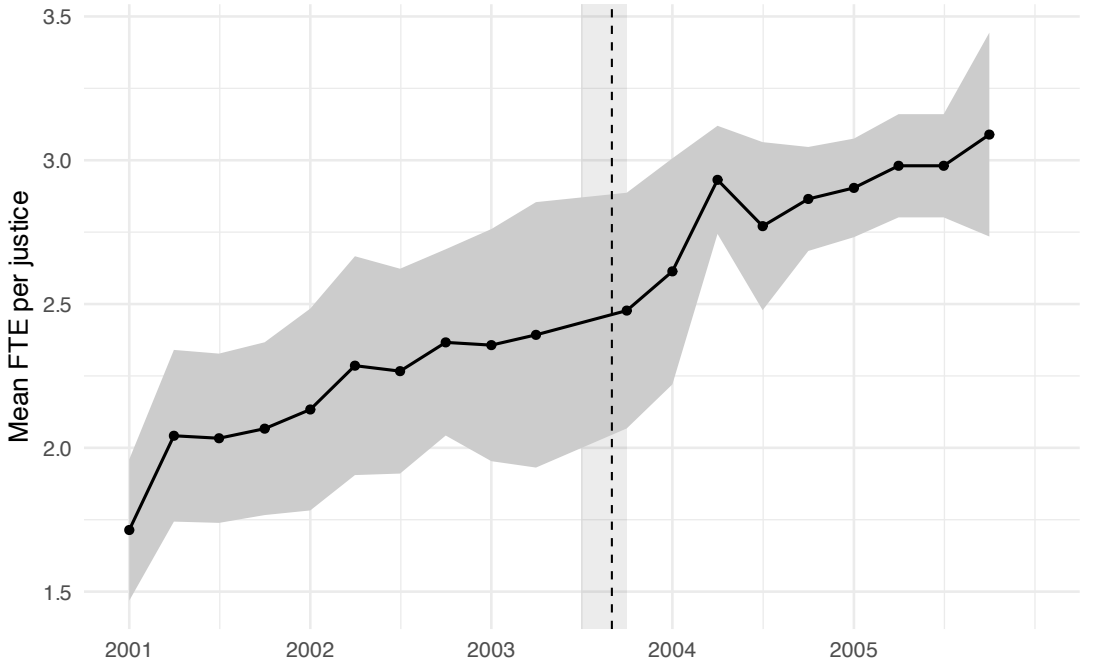


Note: Each bar covers one Justice's service within 2001 to 2005 and shading distinguishes the individual Justice's mandate. Although Vladimír Kůrka is plotted, he was appointed on 15 December 2005 and was therefore unable to deliver any rulings that would affect our analysis. This is why the text refers to 26 Justices rather than 27. Despite the scholarly consensus, this figure also shows three reappointments.
Source: (Paulík 2024), author's own processing.

effect, and the incoming generation arrived after it.[2]

Figure 3.2 shows the average capacity per cabinet across the window.[3] The average rises after September 2003, but the individual paths show that the rise was neither immediate nor uniform. Justices took up the new capacity at different times, to different extents, and some hardly at all. This staggered and voluntary uptake is the reason the identification section exists, because the capacity a cabinet held after 2003 reflects the Justice's own choices.

Figure 3.2: Mean clerk capacity per cabinet, 2001 to 2005



Note: Full-time-equivalent fractions summed within cabinets and averaged across Justices; the band is the 95% confidence interval around the mean and the dashed line marks 1 September 2003. The mean can exceed the ceiling of three full-time equivalents because capacity is summed over every clerk contract active at any point in the period, whereas the ceiling binds at a point in time. A cabinet in which one clerk leaves and a successor starts within the same quarter therefore enters the period with more than its standing complement.
Source: The Court's staffing records, author's own processing.

Table 3.2 reports the descriptive statistics of the quarterly panel. Two features deserve comment. The composition of output is heavily skewed, with a mean of 43.9 admissibility dispositions per Justice-quarter against 3.5 on the merits, so the admissibility gate dominates production in exactly the way literature assumes. And the duration and length variables are defined only for Justice-quarters in

2. The monthly panel identifies ten Justices rather than nine, because it retains July and August 2003, the months the quarterly panel discards with the mixed quarter, and one Justice appointed during that quarter contributes pre-reform observations only there.

3. Figure B.1 in the Appendix shows the individual trajectories.

which at least one case was closed, which the minimum of zero closed cases shows is not every one of them.

Table 3.2: Descriptive statistics, quarterly panel

Variable	N	Mean	SD	Min	Median	Max	Share (%)
fte_total	257	2.46	0.70	1.00	2.50	4.50	
closed_cases	266	47.52	20.98	0.00	51.00	94.00	
closed_cases_chamber	266	46.67	20.72	0.00	50.00	92.00	
admissibility	266	43.91	19.95	0.00	47.00	92.00	92.4
merits	266	3.50	2.74	0.00	3.00	15.00	7.4
procedural	266	0.11	0.40	0.00	0.00	3.00	0.2
backlog	266	105.98	65.26	0.00	98.00	261.00	
avg_duration	252	224.00	112.76	46.22	201.46	779.50	
avg_chars	252	8087.15	2532.72	1993.25	8062.54	15094.09	

Note: Quarterly panel. The duration and length variables are defined only for Justice-quarters with at least one closed case, which is why their N is lower. The final column reports each ground as a share of closed cases, computed as the ratio of the means.
Source: (Paulík 2024) and the Court's staffing records, author's own processing.

Table 3.3 compares the raw quarterly means of key variables before and after the September 2003 reform. On an unconditional basis, cabinet capacity expanded by an average of 0.69 FTE clerks, accompanied by a modest increase in total closed cases (from 45.2 to 50.6 per Justice-quarter) and a substantial, statistically significant surge in mean ruling length of over 2,200 characters. However, these raw comparisons cannot be interpreted causally. Because the 2003 reform coincided with an almost complete turnover of the bench, differences across the two periods confound the institutional effect of the resolution with compositional differences in individual judicial styles across generations—a challenge directly resolved by the within-Justice fixed effects framework in Chapter 4.

Table 3.3: Raw means before and after the reform, quarterly panel

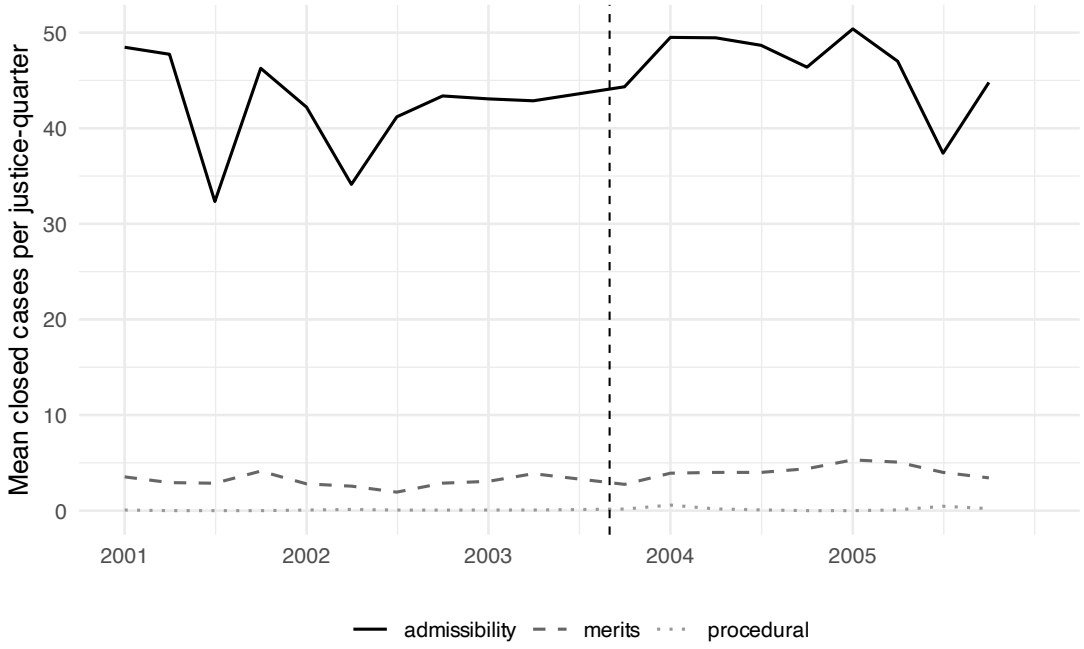
Variable	Pre-reform mean	Post-reform mean	Raw difference	p-value	Share (%) Pre	Share (%) Post
`fte_total`	2.17	2.86	0.69	0.000		
`closed_cases`	45.21	50.64	5.43	0.341		
`closed_cases_chamber`	44.49	49.61	5.12	0.365		
admissibility	42.11	46.34	4.23	0.430	93.1	91.5
merits	3.05	4.11	1.06	0.087	6.7	8.1
procedural	0.05	0.19	0.14	0.013	0.1	0.4
`backlog`	95.16	120.62	25.46	0.181		
`avg_duration`	221.44	227.21	5.77	0.844		
`avg_chars`	7098.70	9322.72	2224.02	0.000		

Note: Raw means over Justice-quarters before and after 1 September 2003, with Q3 2003 excluded as a mixed quarter. The p-value is from a two-group comparison of each variable across the two periods, with standard errors clustered by Justice; these are raw associations with no fixed effects or controls, and they compare different Justices as much as different periods, so they carry no causal interpretation. The share columns report each ground as a percentage of closed cases within the period.
Source: (Paulík 2024) and the Court's staffing records, author's own processing.

Figure 3.3 traces mean output per Justice-quarter by grounds and makes the dominance of the admissibility category visible period by period. That dominance is not a peculiarity of the window. Across the Court's history admissibility dispositions account for 91.3 percent of all decided cases and 92.1 percent of constitutional complaints, stable between 88 and 94 percent year on year.

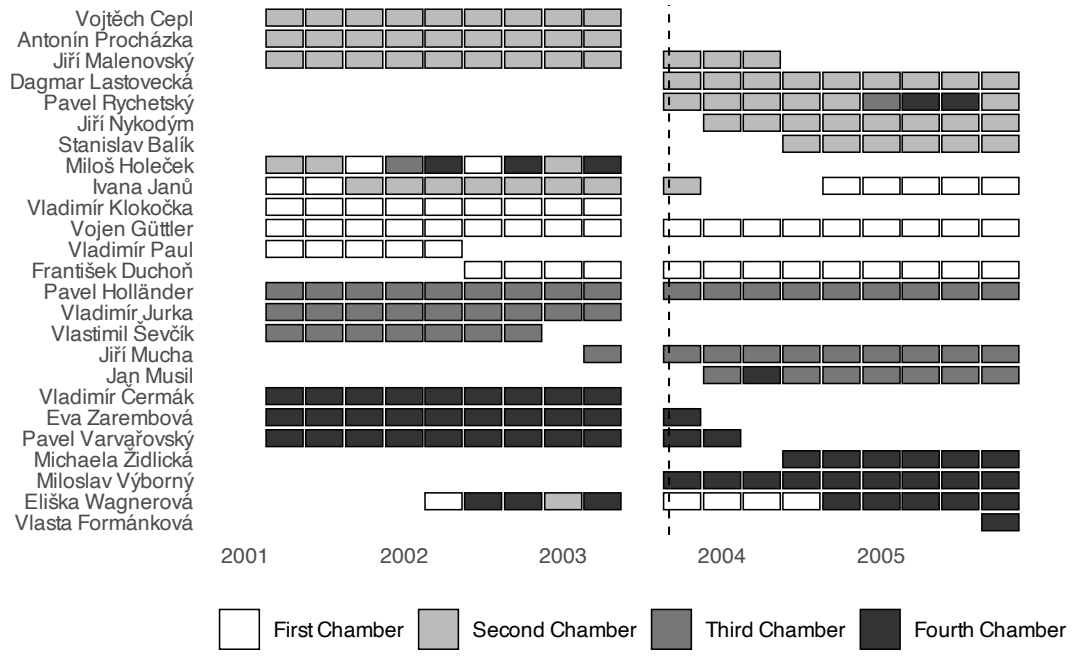
Two final exhibits document the structure within which the chamber-restricted outcomes arise. Figure 3.4 shows the chamber membership of the Justices across the window, and it records that the turnover of 2003 recomposed the chambers along with the bench. Table 3.4 cross-tabulates the form of decision against the grounds by formation, and it verifies in the sample what the measures section claimed, that the *nález* appears only on the merits, that admissibility and procedural dispositions are exclusively *usnesení*, and that the chambers carry nearly the whole of the caseload while the plenum contributes little volume.

Figure 3.3: Mean closed cases per Justice-quarter, by grounds



Note: Quarterly means across Justices, split into admissibility, merits, and procedural dispositions. The dashed line marks 1 September 2003.
Source: (Paulík 2024), author's own processing.

Figure 3.4: Chamber membership of the Justices, 2001 to 2005



Note: Assignment of each Justice to the four three-member chambers over the window.
Source: (Paulík 2024), author's own processing.

Table 3.4: Form of decision against grounds, by formation, 2001 to 2005

Formation	Decision type	Admissibility	Merits	Procedural	Total
First Chamber	Nález	0	244	0	244
First Chamber	Usnesení	3121	0	5	3126
Second Chamber	Nález	0	230	0	230
Second Chamber	Usnesení	3099	0	11	3110
Third Chamber	Nález	0	149	0	149
Third Chamber	Usnesení	3095	0	3	3098
Fourth Chamber	Nález	0	216	0	216
Fourth Chamber	Usnesení	2756	0	7	2763
Plenum	Nález	0	97	0	97
Plenum	Stanovisko pléna	0	7	0	7
Plenum	Usnesení	130	0	7	137
Total		12201	943	33	13177

Source: (Paulík 2024), author's own processing.

3.4 Identification and estimation

To measure the true effect of adding a clerk, I cannot simply compare the number of clerks a cabinet has with its closed cases. Justices choose how many clerks they want based on their own working style, ambition, or backlog, which naturally distorts the results. Instead, I use the September 2003 reform as a natural experiment. Because the reform suddenly allowed Justices to hire more clerks at a specific time they did not control, I can use this event as an "instrument" to isolate the effect of added capacity from the Justices' personal choices.

The first stage regresses capacity on the treatment. For Justice i in period t,

$$FTE_{it} \;=\; \alpha_i \;+\; \pi\, D_t \;+\; u_{it}, \tag{3.1}$$

where FTE_{it} is the capacity variable `fte_total` and D_t is the treatment dummy equal to one from 1 September 2003. The term α_i represents Justice fixed effects. These effectively control for all time-invariant unobserved characteristics of the individual Justices, such as their innate ability, long-term working methods, or career ambition, by exploiting within-Justice variation over time. Finally, u_{it} is the error term. The coefficient π captures the average change in capacity the resolution induced.

The second stage regresses output on the instrumented capacity,

$$Y_{it} \;=\; \mu_i \;+\; \beta\, \widehat{FTE}_{it} \;+\; \varepsilon_{it}, \tag{3.2}$$

where Y_{it} is the dependent variable measuring judicial output (such as the count of closed cases or the average duration in days) for a given period. $\widehat{FTE}_{it}$ is the capacity as predicted by Equation 3.1, μ_i represents the Justice fixed effects for the second stage, and ε_{it} is the error term. The parameter of interest, β, isolates the causal effect of one additional full-time-equivalent clerk on the outcome. The by-grounds variant runs Equation 3.2 separately on each category of disposition, with Y_{it}^{g} for g ranging over admissibility, merits, and procedural decisions.

The reduced form completes the system by regressing output on the treatment directly,

$$Y_{it} \;=\; \nu_i \;+\; \rho\, D_t \;+\; e_{it}, \tag{3.3}$$

where ρ is the effect of the resolution itself, the intent-to-treat estimate, averaged over the cabinets that took the permission up and those that did not. The three equations are linked by construction, since $\rho = \beta\pi$: the IV coefficient must equal the reduced-form coefficient divided by the first stage, which makes the three sets of estimates a check on one another rather than three separate claims.

Finally, for all models, statistical inference is conducted using clustered standard errors. Because my dataset tracks the same Justices over multiple months or quarters, observations belonging to the same Justice are not strictly independent of one another. Clustering the standard errors at the Justice level accounts for this potential serial correlation, ensuring that the precision of my estimates is not artificially inflated and the reported statistical significance is reliable.

4. Results

This chapter presents the empirical estimates and evaluates them against the theoretical hypotheses developed in Chapter 2. I first establish the first-stage effect of the 2003 reform on cabinet capacity. The subsequent sections test the three outcome margins in turn: disposition volume (Hypothesis A), compositional shifts toward the merits (Hypothesis B), and drafting intensity within procedural rulings (Hypothesis C). The chapter concludes with a series of robustness and specification checks.

4.1 The first stage

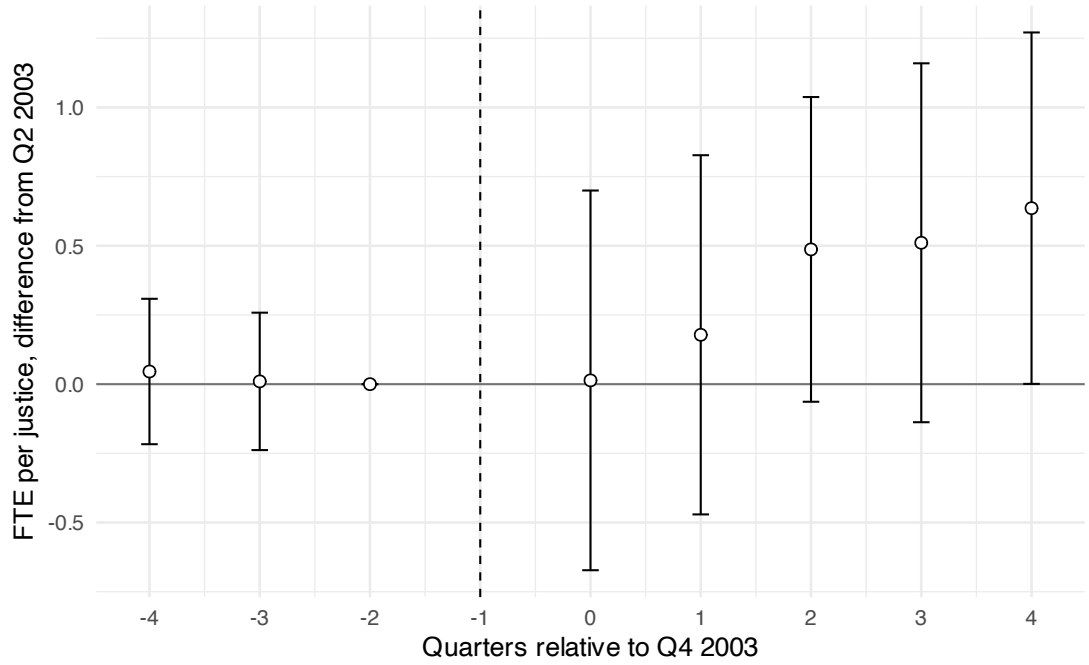
The empirical strategy relies on the premise that cabinet capacity expanded as a direct consequence of Resolution No. Org. 11/03-3 rather than continuing a pre-existing upward trend. If cabinets had already been growing prior to September 2003, post-reform changes in judicial output could not be attributed to the resolution. This section validates the first-stage relationship and verifies the timing of the capacity shock.

Figure 4.1 shows when the increase arrived. TThe coefficients four and three quarters before the reform are essentially zero, at 0.05 and 0.01, with intervals covering zero, so there is no sign of growth before the reform; the reference quarter (Q2 2003, $t = -2$) is the last fully untreated quarter. At the first fully treated quarter the coefficient is still flat at zero, and the increase builds over the following year, reaching roughly 0.5 two quarters later and roughly 0.6 four quarters later. The gradual build is the staggered and voluntary uptake documented earlier. The resolution permitted rather than required, and the Justices took up the new capacity at their own pace.

The pace itself is informative and stems from three institutional sources. First, hiring a clerk is a durable commitment rather than a quarterly input purchase, since a clerk's tenure runs with the Justice's own mandate. Second, the resolution reached a bench in the middle of a generational turnover. Newly arrived Justices inherited existing dockets and chamber assignments, meaning they needed time to assess their needs before hiring. Finally, even a decided hire requires administrative lead time before generating a contract start date. The gradual build in Figure 4.1 is therefore the signature of a durable choice made by a rotating bench, not weak compliance. Consequently, the first-stage coefficient averages over cabinets that never took the permission up, which is what makes the IV estimate a local one.

Table 4.1 presents the estimated effect of the reform on cabinet capacity,

Figure 4.1: Event study of cabinet capacity



Note: First-stage event study. Points are quarter-dummy coefficients with the outcome in levels, measured against Q2 2003, the last fully untreated quarter, drawn at zero as the reference; Q3 2003 is the excluded mixed quarter and 0 marks Q4 2003, the first fully treated quarter. Bars are 95% confidence intervals from Justice-clustered standard errors.
Source: The Court's staffing records, author's own processing.

controlling for Justice fixed effects. The reform expanded the personnel of the cabinets. In the baseline quarterly panel the reform increased capacity by 0.706 FTE clerks per cabinet. This estimate is statistically significant at the five percent level (clustered SE = 0.259, $N = 256$) and yields a cluster-robust F-statistic of 7.41.

The estimate is stable across specifications and frequencies. Estimating the model on a monthly rather than quarterly basis yields a nearly identical coefficient of 0.693 (SE = 0.255, $N = 804$). Furthermore, restricting the analysis to a balanced subsample of the nine Justices observed on both sides of the reform produces exactly the same point estimate of 0.706 (SE = 0.270, $N = 120$). In substantive terms, the estimates barely move across samples, so the reform added roughly seven tenths of an FTE clerk to each Justice's cabinet. Having established that this capacity increase is entirely attributable to the post-September 2003 period, the rest of the chapter asks what that new capacity was spent on.

Table 4.1: First stage, capacity on the treatment

	Capacity (FTE per justice)		
	(1)	(2)	(3)
Post (reform in force)	0.706**	0.693**	0.706**
	(0.259)	(0.255)	(0.270)
Estimator	OLS	OLS	OLS
Formations	all	all	all
Period	quarterly	monthly	quarterly
Sample	all justices	all justices	balanced
Cluster-robust F	7.41	7.37	6.83
Effective F	7.41	7.37	6.83
N (justice × period)	256	804	120
Justices	26	26	9
Observed on both sides	9	10	9

Note: * $p < 0.10$, ** $p < 0.05$, *** $p < 0.01$. Standard errors in parentheses, clustered by Justice; Justice fixed effects throughout. Observed on both sides counts Justices present before and after 1 September 2003 with capacity recorded, the only Justices contributing treatment variation once Justice fixed effects are in place.
Source: (Paulík 2024) and the Court's staffing records, author's own processing.

4.2 The volume of dispositions

Docket comfort (Hypothesis A) requires three findings together: a higher volume of closed cases, no compositional shift toward the merits, and no rise in duration within a disposition type, which Section 4.4 examines. The absolute count of closed cases is the natural starting point, but it cannot discriminate between the

three accounts on its own, since docket comfort and reinvestment (Hypotheses A and B) both accommodate an increase in overall dispositions while intensity (Hypothesis C) is silent on the matter.

Table 4.2 reports the estimates for closed cases. The OLS results point to a clear positive relationship. In the quarterly panel, each additional FTE clerk is associated with roughly six more closed cases per Justice-quarter (coefficient = 5.666, SE = 2.355). When instrumented using two-stage least squares, the estimated effect doubles to 12.478 but becomes too imprecise to be statistically distinguished from zero. The monthly panel mirrors this pattern, yielding a precise OLS estimate of about two extra closed cases per month (2.048, SE = 0.759) and a larger, marginally significant instrumented effect (6.040, SE = 3.172). The corresponding reduced-form estimate indicates that the reform as a whole added roughly 8.8 closed cases per Justice-quarter (SE = 5.752; see Table 4.5), mirroring the direction of the IV coefficient through the Wald identity.

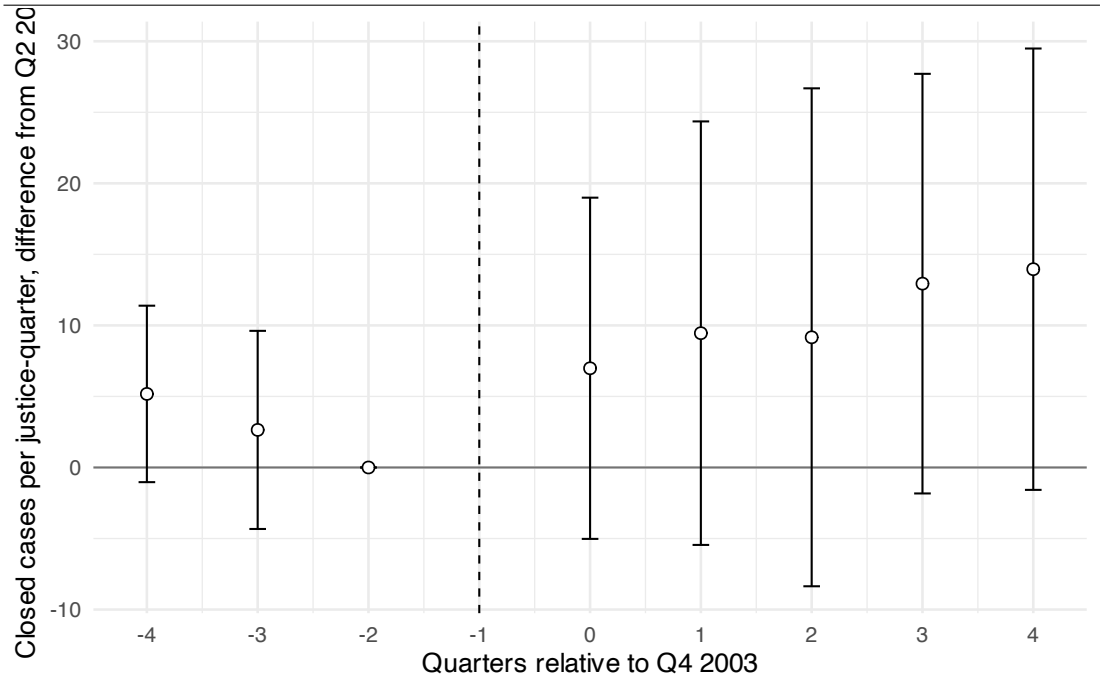
Table 4.2: Closed cases, OLS and two-stage least squares

	Closed cases per justice-period			
	(1)	(2)	(3)	(4)
Capacity (FTE per justice)	5.666**	12.478	2.048**	6.040*
	(2.355)	(8.875)	(0.759)	(3.172)
Estimator	OLS	IV	OLS	IV
Formations	all	all	all	all
Period	quarterly	quarterly	monthly	monthly
First-stage F		7.41		7.37
N (justice × period)	256	256	804	804
Justices	26	26	26	26
Observed on both sides	9	9	10	10
Hausman test (p-value)		0.049		0.000

Note: * $p < 0.10$, ** $p < 0.05$, *** $p < 0.01$. Standard errors in parentheses, clustered by Justice; Justice fixed effects throughout. The IV columns instrument capacity with the post-reform dummy. Observed on both sides counts Justices present before and after 1 September 2003 with capacity recorded, the only Justices contributing treatment variation once Justice fixed effects are in place. The Hausman row is the Durbin–Wu–Hausman test, reported as a diagnostic; under heterogeneous treatment effects its rejection does not by itself select an estimator.
Source: (Paulík 2024) and the Court's staffing records, author's own processing.

Figure 4.2 places the volume result in time. The pre-reform estimates are somewhat noisy (5.2 and 2.5) but their confidence intervals include zero, indicating no statistically significant pre-trends. Following the reform, the point estimates rise, reaching roughly 13 to 14 additional closed cases four quarters later. However, because the confidence intervals widen and continue to overlap zero, the event study remains suggestive rather than decisive.

Figure 4.2: Event study of closed cases



Note: Reduced-form event study. Points are quarter-dummy coefficients with closed cases in levels, measured against Q2 2003 (the last fully untreated quarter) drawn at zero as the reference; Q3 2003 is the excluded mixed quarter and 0 marks Q4 2003 (the first fully treated quarter). The pre-reform mean of closed cases is 45.2 per Justice-quarter, which scales the post-reform coefficients. Bars are 95% confidence intervals from Justice-clustered standard errors.
Source: (Paulík 2024) and the Court's staffing records, author's own processing.

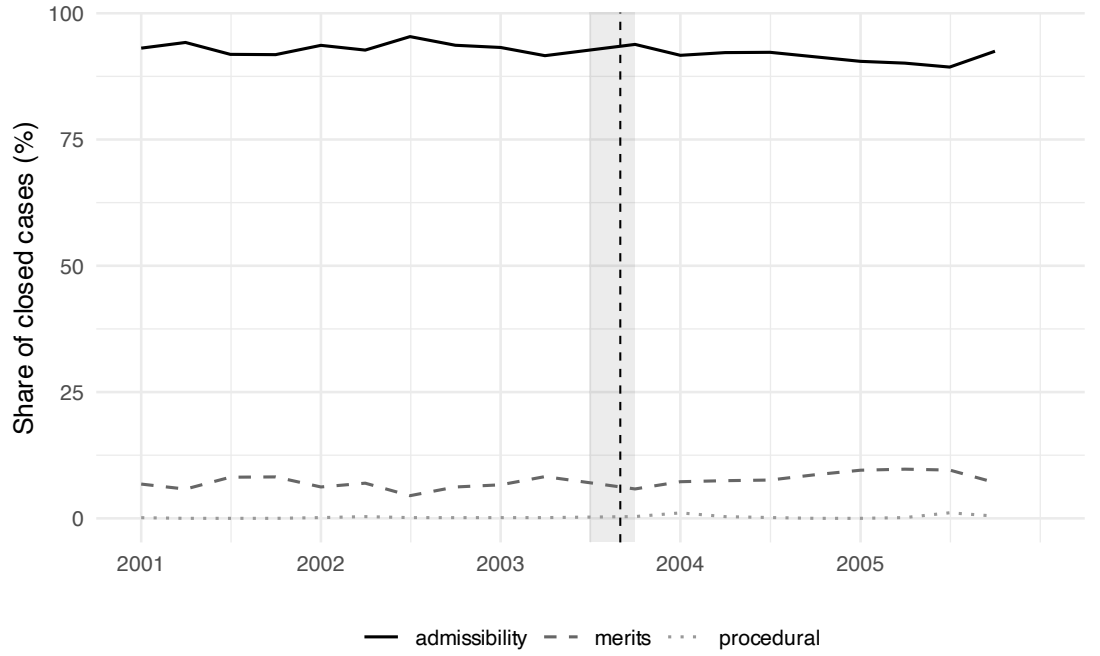
The level question therefore remains only partially resolved. The point estimates go up across all specifications, consistently suggesting that an added clerk produces more output, but the imprecision in the instrumental variable strategy prevents me from putting it forward as a finding. Even so, the volume claim is plausible enough to warrant testing its critical second limb: that any such increase in output remains confined to the admissibility gate. Section 4.3 turns to this compositional test.

4.3 The composition of dispositions

This section asks whether the mix of dispositions moved toward the merits, which is the signature of reinvestment (Hypothesis B). The ground on which a case is disposed is chosen by the Court, so the mix itself is a potential outcome of the reform, and conditional-on-type comparisons rest on groups whose membership the treatment may have moved. Figure 4.3 plots the shares of the three grounds over the window, showing that raw merits shares remain visually flat around 5 to 10 percent. Accounting for the relative growth rates in the regressions, an additional full-time-equivalent clerk shifts the model-implied merits share from roughly 6.7% to 7.8%; the per-clerk estimates are reported below. The shift is substantively interesting in its own right, capacity tilting the Court toward the more demanding instrument rather than merely toward more of the same, and it carries two methodological consequences. For outcomes defined over all dispositions, the aggregate estimates remain the policy-relevant quantities, because choosing the more demanding instrument is itself part of the response to capacity. Estimates conditional on grounds, reported in Section 4.4, compare endogenously selected groups, and that caveat governs the reading of Table 4.7.

Because admissibility dismissals vastly outnumber merits decisions in baseline levels (roughly 14 to 1), evaluating Hypothesis B requires comparing growth rates relative to each category's pre-reform mean alongside absolute counts. Table 4.3 reports the baseline estimates in levels. In the quarterly panel, an additional FTE clerk is associated with roughly five more admissibility dismissals in OLS (coefficient = 4.789, SE = 2.321) and nearly one additional merits decision (0.831, SE = 0.231). The IV coefficients are larger (roughly 11 and 1.5, respectively) though estimated with less precision.

Figure 4.3: Composition of closed output by grounds, quarterly shares



Note: Each line is the quarter's mean count of dispositions of that ground as a share of the quarter's mean closed cases, in per cent. The dashed line marks 1 September 2003; Q3 2003 is shaded as the excluded mixed quarter.
Source: (Paulík 2024), author's own processing.

Table 4.3: Closed cases by grounds of disposition

	Admissibility		Merits		Procedural	
	(1)	(2)	(3)	(4)	(5)	(6)
Capacity (FTE per justice)	4.789*	10.972	0.831***	1.473	0.047	0.033
	(2.321)	(7.930)	(0.231)	(1.215)	(0.041)	(0.067)
Estimator	OLS	IV	OLS	IV	OLS	IV
Formations	all	all	all	all	all	all
Period	quarterly	quarterly	quarterly	quarterly	quarterly	quarterly
First-stage F		7.41		7.41		7.41
N (justice × period)	256	256	256	256	256	256
Justices	26	26	26	26	26	26
Observed on both sides	9	9	9	9	9	9
Hausman test (p-value)		0.063		0.271		0.890

Note: * $p < 0.10$, ** $p < 0.05$, *** $p < 0.01$. Standard errors in parentheses, clustered by Justice; Justice fixed effects throughout. The IV columns instrument capacity with the post-reform dummy. Observed on both sides counts Justices present before and after 1 September 2003 with capacity recorded, the only Justices contributing treatment variation once Justice fixed effects are in place. The Hausman row is the Durbin–Wu–Hausman test, reported as a diagnostic; under heterogeneous treatment effects its rejection does not by itself select an estimator.
Source: (Paulík 2024) and the Court's staffing records, author's own processing.

To make sense of these level shifts, Table 4.4 translates them into proportional terms. Against a pre-reform mean of roughly 42 admissibility dispositions per Justice-quarter, the IV estimate of 10.972 represents a growth of 26.1%. By contrast, against a much smaller pre-reform mean of about 3.0 merits decisions, the IV estimate of 1.473 represents a substantial 48.4% increase.

Table 4.4: Proportional effects by grounds of disposition

	Pre-reform mean	IV coefficient	Per cent of mean
Admissibility	42.111	10.972	26.1
		(7.930)	
Merits	3.046	1.473	48.4
		(1.215)	
Procedural	0.052	0.033	62.6
		(0.067)	

Note: * $p < 0.10$, ** $p < 0.05$, *** $p < 0.01$. Standard errors in parentheses, clustered by Justice; Justice fixed effects throughout. The IV column instrument capacity with the post-reform dummy.
Source: (Paulík 2024) and the Court's staffing records, author's own processing.

In proportional terms the merits grew roughly twice as fast as the admissibility gate, which is the direction reinvestment (Hypothesis B) predicts and the opposite of what the second limb of docket comfort (Hypothesis A) requires. The size of the shift is worth stating in the same breath as its direction. Applied to the pre-reform means, one additional FTE clerk moves the merits share of a cabinet's

output from 6.7 to 7.8%, so what the table shows is a shift of about one percentage point rather than a redirection of the cabinet toward substantive review.

Two caveats qualify these findings. While the IV coefficients lack individual statistical significance and the difference between the two growth rates is not directly tested, the OLS estimates confirm the same ranking on firmer statistical ground by showing a 27.3% increase for merits versus 11.4% for admissibility. Consequently, the point estimates consistently indicate a small shift toward the merits. This evidence weighs against the second limb of docket comfort (Hypothesis A), which requires the merits share to hold or fall, even if it does not definitively establish reinvestment (Hypothesis B).

4.4 Intensity within dispositions

Because merits judgments (*nález*) are inherently longer and slower to produce than procedural rejections (*usnesení*), any compositional shift toward the merits mechanically inflates aggregate averages. Moreover, proceeding duration is a peripheral metric that reflects passive queueing and system speed rather than active judicial effort. To isolate genuine changes in drafting intensity from caseload composition, I evaluate ruling length and duration within each disposition type separately.

Table 4.5 first reports the reduced-form estimates across all outcome variables, capturing the direct intent-to-treat effects of Resolution No. Org. 11/03-3. The resolution as adopted added roughly 8.8 closed cases per Justice-quarter (SE = 5.752) and 4.2 per Justice-month (SE = 1.726), raised the mean ruling length by about 2,050 characters, and increased the mean time from filing to decision by about 63 days, while the stock of pending cases did not demonstrably move. These reduced-form coefficients satisfy the exact Wald identity ($\rho = \beta\pi$) with the first-stage and instrumented estimates, confirming the internal consistency of the empirical system.

Table 4.5: Reduced form, outcomes on the reform dummy

Outcome	Panel	Pre-reform mean	Post dummy	N
Closed cases	Quarterly	45.209	8.806	256
			(5.752)	
Closed cases	Monthly	14.898	4.188**	804
			(1.726)	
Admissibility	Quarterly	42.111	7.744	256
			(5.101)	
Merits	Quarterly	3.046	1.039	256
			(0.843)	
Duration (days)	Quarterly	221.439	63.257***	247
			(17.628)	
Ruling length (characters)	Quarterly	7098.695	2049.986***	247
			(562.724)	
Backlog (cases)	Quarterly	95.163	-6.621	256
			(26.130)	

Note: * $p < 0.10$, ** $p < 0.05$, *** $p < 0.01$. Standard errors in parentheses, clustered by Justice; Justice fixed effects throughout. Each row regresses the outcome on the post-reform dummy on the same estimation sample as the corresponding IV column, so the coefficients are the intent-to-treat effects of the resolution and satisfy the Wald identity with the first stage and the IV estimates of the other tables.
Source: (Paulík 2024) and the Court's staffing records, author's own processing.

Table 4.6 reports the corresponding baseline IV and OLS aggregates. The OLS estimates show an overall increase in average duration of roughly 31 days and a highly significant increase in ruling length of over 1,300 characters. The IV estimates point in the same direction, suggesting an increase of about 90 days and nearly 2,900 characters. However, for the reason outlined above, these aggregate increases cannot yet be safely attributed to increased effort.

Table 4.6: Duration, backlog, and ruling length

	Duration (days)		Backlog (cases)		Ruling length (characters)	
	(1)	(2)	(3)	(4)	(5)	(6)
Capacity (FTE per justice)	30.655	89.630*	1.738	-9.381	1324.520***	2904.660**
	(18.581)	(48.406)	(10.607)	(37.468)	(295.736)	(1178.707)
Estimator	OLS	IV	OLS	IV	OLS	IV
Formations	all	all	all	all	all	all
Period	quarterly	quarterly	quarterly	quarterly	quarterly	quarterly
First-stage F		7.39		7.41		7.39
N (justice × period)	247	247	256	256	247	247
Justices	26	26	26	26	26	26
Observed on both sides	9	9	9	9	9	9
Hausman test (p-value)		0.001		0.234		0.000

Note: * $p < 0.10$, ** $p < 0.05$, *** $p < 0.01$. Standard errors in parentheses, clustered by Justice. Justice fixed effects are included throughout. The IV columns instrument capacity with the post-reform dummy. "Observed on both sides" counts the Justices present both before and after 1 September 2003 with recorded capacity; these are the only Justices contributing treatment variation in the fixed-effects models. The Hausman row reports the p-value of the Durbin–Wu–Hausman test as a diagnostic. The duration and ruling-length columns have $N = 247$ because Justice-quarters with zero closed cases are excluded, whereas the backlog columns use the full sample of $N = 256$.
Source: (Paulík 2024) and the Court's staffing records, author's own processing.

Table 4.7 and Figure 4.4 present the results conditional on disposition type. Restricted to admissibility decisions (*usnesení*), the IV estimate for ruling length increases by a significant 2,674 characters ($p < 0.05$). Against a pre-reform mean of roughly 6,200 characters, this represents a substantial expansion of about two-fifths.

The filing-to-decision duration for admissibility dispositions also rises, increasing by roughly 91 days against a 207-day baseline. While this duration metric mixes active processing with passive waiting time, it directly tests the speed prediction of docket comfort (Hypothesis A). Because the total time a case spent in the system before an admissibility dismissal grew rather than declined after the reform, this finding firmly rejects the speed claim of Hypothesis A.

What about the merits (*nález*)? Here, the estimates tell a different story. The estimated duration within merits dispositions barely moves, an increase of just 3.1 days against a baseline of 393 days. For ruling length within merits, the point estimate is large (over 3,550 characters), but it is accompanied by an enormous standard error (2850.917) and a weakened first-stage F-statistic, effectively rendering it uninformative.

Table 4.7: Duration and ruling length within disposition type

	Ruling length (characters)			Duration (days)		
	(1)	(2)	(3)	(4)	(5)	(6)
Capacity (FTE per justice)	2904.660**	2674.191**	3554.664	89.630*	90.607*	3.106
	(1178.707)	(1237.845)	(2850.917)	(48.406)	(50.735)	(62.998)
Estimator	IV	IV	IV	IV	IV	IV
Dispositions	all	usnesení	nález	all	admissibility	merits
Formations	all	all	all	all	all	all
Period	quarterly	quarterly	quarterly	quarterly	quarterly	quarterly
First-stage F	7.39	7.39	5.29	7.39	7.39	5.29
Pre-reform mean	7098.695	6228.835	18081.017	221.439	206.958	393.076
AR set, lower	1277.765	996.614	-723.241	31.001	28.974	-298.738
AR set, upper	11215.938	11211.904	44117.681	469.450	488.420	290.876
AR verdict	excludes zero	excludes zero	contains zero	excludes zero	excludes zero	contains zero
N (justice × period)	247	247	227	247	247	228
Justices	26	26	26	26	26	26
Observed on both sides	9	9	9	9	9	9
Hausman test (p-value)	0.000	0.000	0.349	0.001	0.002	0.961

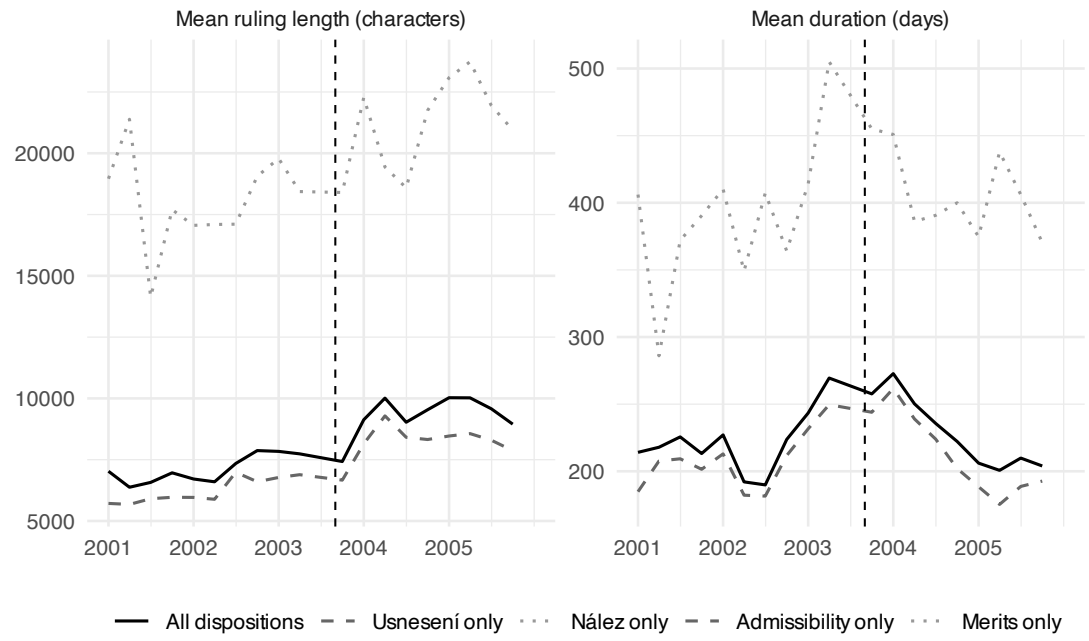
Note: * $p < 0.10$, ** $p < 0.05$, *** $p < 0.01$. Standard errors in parentheses, clustered by Justice. Justice fixed effects are included throughout. Capacity is instrumented with the post-reform dummy. Columns (1) and (4) repeat the aggregate results; the remaining columns restrict the sample to a single disposition type. Sample sizes (N) fall in the restricted columns because Justice-quarters with no dispositions of a given type are excluded. The Anderson–Rubin rows report the 95% confidence sets in the outcome's units. The Hausman test p-value is reported as a diagnostic (see Section 4.5 for discussion). Note that restricting by disposition type (Columns 2, 3, 5, and 6) conditions on a potential outcome of the reform; aggregate columns are robust to this compositional shift. In the Court's practice, nearly every *nález* is a decision on the merits, and nearly every *usnesení* is a procedural admissibility decision.
Source: (Paulík 2024) and the Court's staffing records, author's own processing.

Figure 4.5 places the ruling-length result in time, providing the cleanest event study in this chapter. The pre-reform coefficients are perfectly flat (0.1 and 0.0 thousand characters, with intervals comfortably covering zero), indicating no pre-trends. The coefficient at the first fully treated quarter remains flat, and the increase sharply appears one quarter later. From that point on, it hovers between roughly 1,600 and 2,500 characters, with confidence intervals clear of zero.

Intensity at the gate (Hypothesis C) is the account the empirical evidence supports. The within-type estimates confirm that the aggregate increase in ruling length is not merely the compositional shift toward the merits reappearing in another form. A back-of-the-envelope calculation illustrates this: because a *nález* averages roughly 18,100 characters compared to 6,230 characters for an *usnesení*, the one-percentage-point increase in the merits share mechanically raises the mean ruling length by only about 120–130 characters at fixed baseline lengths. This composition effect accounts for less than five percent of the overall 2,904-character aggregate effect, aligning closely with the independently estimated within-*usnesení* increase of 2,674 characters.

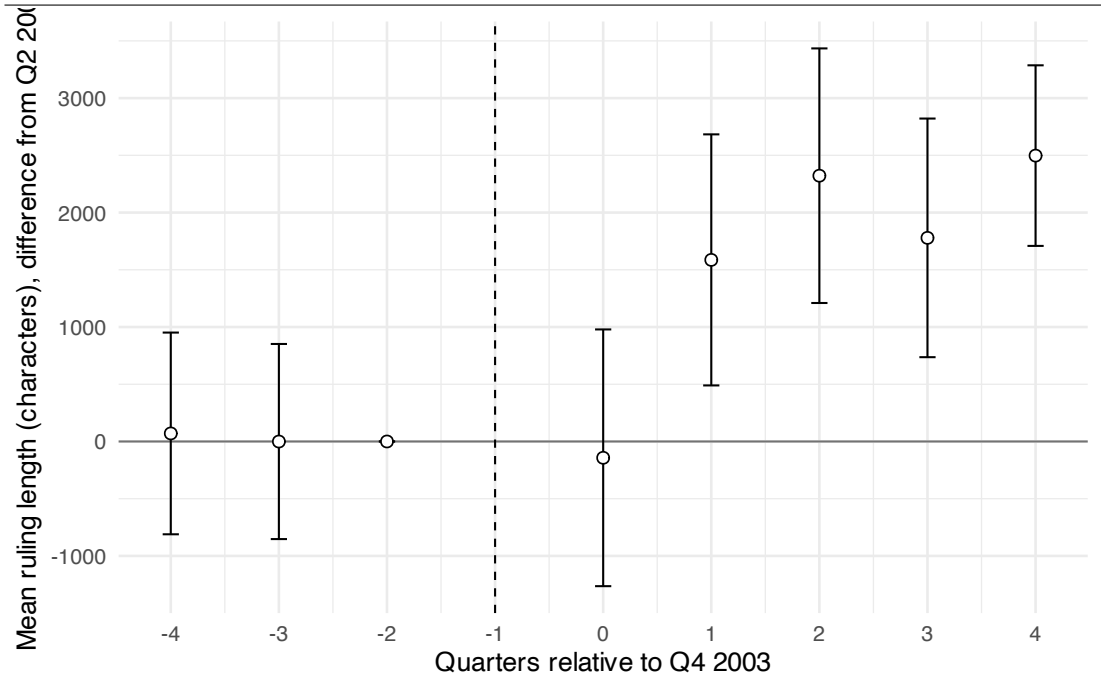
A similar order-of-magnitude exercise for case duration attributes only about two days to the compositional shift toward longer merit proceedings. In the regression estimates, the within-admissibility effect (90.6 days) is virtually identical

Figure 4.4: Within-type estimates for duration and ruling length



Note: The figure plots raw quarterly means without confidence intervals. The left panel displays the mean ruling length across all dispositions and separately within each form of decision. The right panel displays the mean duration across all dispositions and separately for admissibility and merits decisions. The vertical dashed line marks the reform date of 1 September 2003. Corresponding point estimates and 95% confidence sets are reported in Table 4.7.
Source: (Paulík 2024), author's own processing.

Figure 4.5: Event study of average ruling length



Note: Reduced-form event study: mean ruling length regressed on quarter dummies with no instrument, coefficients measured against Q2 2003 as in Figure 4.1; the quarter definitions are identical on both axes. Bars are 95% confidence intervals from Justice-clustered standard errors. *Source:* (Paulík 2024) and the Court's staffing records, author's own processing.

to the aggregate effect (89.6 days). Both are estimated on the same 247 Justice-quarters, so the remaining gap of about one day is estimation noise rather than a compositional channel.

Together, these calculations demonstrate that portfolio reallocation plays only a minor role: the aggregate gains in both text length and disposition time are overwhelmingly driven by increased effort and deliberation within the dominant admissibility category rather than by a mechanical change in case mix.

4.5 Robustness checks

To confirm that the main results are not artifacts of specific sampling or modeling choices, this section performs several robustness checks. Beyond re-estimating the models on a balanced subsample of continuing Justices and utilizing the monthly panel to retain summer observations, I run three targeted tests: a placebo reform in time, the addition of seasonal controls, and log-transformations for right-skewed outcomes.

First, to establish that the estimates are not merely capturing a pre-existing trend of increasing output, I run a falsification test by shifting the reform dummy backward. When dropping the true post-reform period (September 2003 onwards) and applying a placebo treatment to the remaining data, the reduced-form effect on closed cases vanishes completely (e.g., $p = 0.73$ in the quarterly panel).

Second, the baseline models do not include seasonal fixed effects. Adding quarter-of-year or month-of-year indicators to the main volume models leaves the estimates virtually untouched (for instance, the quarterly IV coefficient shifts trivially from 12.478 to 12.115).

Third, to ensure that the intensity results (Hypothesis C) are not driven by right-skewed extremes, such as a single case left pending for years, I apply a natural logarithm transformation to both duration and ruling length. The log-level estimates mirror the primary findings in statistical significance, while sharpening the substantive interpretation: an added FTE clerk increases the duration of an admissibility *usnesení* by 62.4%, compared to a precise null increase of just 6.0% for a merits decision.

Table 4.8 reports the balanced subsample check. On the balanced quarterly sample, the OLS estimate for closed cases is 6.893 (SE = 3.471) and the instrumented estimate is 12.478 (SE = 9.244). On the balanced monthly sample, the corresponding estimates are 2.103 (SE = 0.953) and 6.040 (SE = 3.281). The instrumented coefficient is identical to the full sample by construction. The Justices excluded by this restriction are observed on only one side of the reform and contribute nothing to the treatment coefficient once Justice fixed effects are in

place. Consequently, for the IV estimates, the point coefficient remains unchanged and only the standard error changes. This serves as a check that the estimation behaves consistently rather than as an independent empirical result.

Table 4.8: Closed cases in the balanced subsample

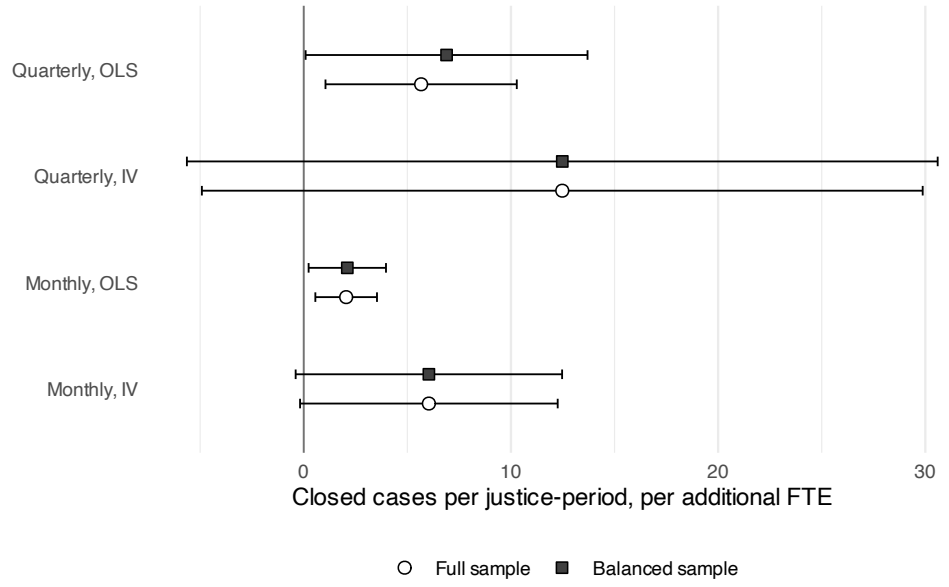
	Closed cases per justice-period			
	(1)	(2)	(3)	(4)
Capacity (FTE per justice)	6.893*	12.478	2.103*	6.040*
	(3.471)	(9.244)	(0.953)	(3.281)
Estimator	OLS	IV	OLS	IV
Formations	all	all	all	all
Period	quarterly	quarterly	monthly	monthly
Sample	balanced	balanced	balanced	balanced
First-stage F		6.83		6.89
N (justice × period)	120	120	412	412
Justices	9	9	10	10
Observed on both sides	9	9	10	10

Note: * $p < 0.10$, ** $p < 0.05$, *** $p < 0.01$. Standard errors in parentheses, clustered by Justice; Justice fixed effects throughout. Observed on both sides counts Justices present before and after 1 September 2003 with capacity recorded, the only Justices contributing treatment variation once Justice fixed effects are in place.
Source: (Paulík 2024) and the Court's staffing records, author's own processing.

Finally, the divergence between the OLS and IV estimates warrants careful interpretation rather than concern. Given the first-stage and reduced-form estimates, the IV coefficient must mechanically exceed the reduced form whenever uptake is below one, and the estimates align with this arithmetic. The gap between OLS and IV is a different matter because it is not mechanical.

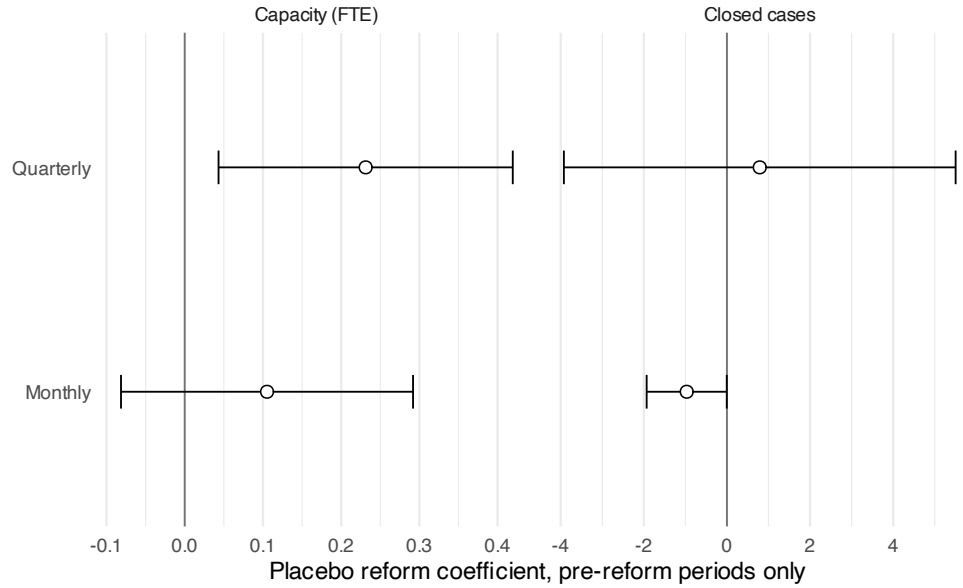
While the Hausman tests reject the null hypothesis of estimator equality for several outcomes and are reported as diagnostics, they do not automatically establish IV as the superior estimator. Relying on them for model selection assumes homogeneous treatment effects—meaning an additional clerk shifts every cabinet's output identically—which is implausible in this setting. Under heterogeneous treatment effects, the two estimators capture differently weighted parameters, with the IV estimating a LATE for the compliers. The Justices who expanded their cabinets specifically because the resolution permitted it. Both interpretations, attenuated OLS under homogeneous effects and a complier-specific local effect under heterogeneous ones, are consistent with the empirical evidence.

Figure 4.6: Balanced subsample comparison



Note: Comparison of full and balanced sample estimates across quarterly and monthly panels, with 95% confidence intervals.
Source: (Paulík 2024) and the Court's staffing records, author's own processing.

Figure 4.7: Placebo reform in time



Note: Falsification test applying a placebo treatment to pre-reform data, showing 95% confidence intervals.
Source: (Paulík 2024) and the Court's staffing records, author's own processing.

5. Discussion

The empirical analysis in Chapter 4 showed that while overall throughput rose imprecisely and the composition of output tilted slightly toward the merits, the most decisive and statistically robust shift occurred within the preliminary admissibility gate itself. This chapter examines the substantive implications of these findings. I first consider what the gatekeeping result reveals about judicial workload management and institutional capacity, discuss alternative interpretations of longer procedural dismissals, evaluate the methodological and data limitations of the research design, and outline avenues for future inquiry.

5.1 Substantive interpretation of the findings

5.1.1 Interpreting within-type estimates and null findings

Two readings of Table 4.7 have to be resisted before the substantive discussion begins. The first is treating the split by ruling length and the split by duration as two independent pieces of confirming evidence. They are not. Because over this window nearly every *nález* is a merits disposition and nearly every *usnesení* is an admissibility disposition, the two splits cut the same docket the same way (see Table 3.4). These are two measurements of one underlying reality, and presenting them as independently confirming each other would overstate the evidence.

The second is to dismiss both non-results on the merits side as definitive nulls. They fail for opposite reasons. The ruling length for the *nález* suffers from imprecision, a large point estimate carrying a standard error nearly as large again on a smaller subsample, which leaves the question of length open. The duration for merits yields an estimate of 3.1 days against a 393-day baseline, which is a true null effect: an estimate close enough to zero on a sufficiently large base to state with confidence that duration did not change.

5.1.2 Two readings of a longer rejection

The central finding admits two interpretations. On the first, the added text is added reasoning. A complainant whose case is rejected now receives an explanation the constrained Court could not previously afford to write, which is a real if modest improvement in what the constitutional remedy delivers. On the second, the added text is absorbed capacity. Boilerplate, longer recitals of the procedural history, or a more elaborate restatement of the complaint, none of which changes what the complainant learns about why the case failed.

Both readings are consistent with the empirical findings, because ruling length measures the quantity of text and not its content. Distinguishing between them requires analyzing the substantive content of the rulings rather than counting characters—an avenue outlined in Section 5.3. While the quantitative data cannot arbitrate this issue, the sheer volume of incoming filings and the routine mechanics of admissibility screening make the second interpretation—that additional text primarily comprises standardized procedural recitals and absorbed capacity rather than bespoke legal reasoning—structurally more plausible.

5.1.3 The findings against the literature

The result sits awkwardly with both accounts of Chapter 2, and the awkwardness is informative. Posner (1993) predicts that relief from pressure is taken as comfort, which would show up as a shorter queue and no change in the work itself. That is not what happened. The queue did not demonstrably shorten and the work per disposition grew, and within the admissibility disposition the time from filing to decision rose rather than fell, which is the movement Hypothesis A rules out. Engel and Weinshall (2020) find that relieved judges reinvest in the cases, which is closer to what happened here, but their reinvestment appears in the outcomes litigants receive while the reinvestment observed here appears in a disposition that refuses to reach the outcome at all.

The difference in the treatment explains part of the divergence. Engel and Weinshall (2020) observe work removed from judges, while this paper observes hands added to them, and there is no reason to expect the two to be spent identically. Added hands are most easily plugged in where delegation is already routine, and both the comparative literature and the Czech interview evidence locate routine delegation at the screening and drafting stage (Kromphardt 2015; Brenner and Palmer 1990; Hořeňovský and Chmel 2015). An effect that appears at the admissibility gate is an effect appearing exactly where clerk capacity connects to the production of dispositions.

Read through Coan (2012), the episode is a small confirmation of a large claim. Capacity did shape what the Court produced, but it shaped the form of the screening disposition rather than the doctrine, which is a more modest channel than Coan describes and operates in the same direction.

5.1.4 Selection into take-up and cabinet productivity

The IV estimate for closed cases is roughly twice the OLS estimate, 12.5 against 5.7 dispositions per Justice-quarter. If the effects vary across Justices, this difference is meaningful. OLS measures the effect of capacity everywhere, while the IV

only measures the Justices who hired clerks specifically because the resolution allowed it. One reading is a positive selection effect, with the Justices who took the permission up being those best placed to turn an extra clerk into more output. The data show who hired but not why, so this cannot be established here. Section 4.5 sets out the alternative reading, attenuation in OLS under homogeneous effects, and the evidence does not choose between them.

5.1.5 What this says about the 2003 resolution

The plenum acted to keep a court working through a staffing crisis, and on the evidence assembled here the resolution did not deliver the throughput that motivated it, or at least did not deliver it demonstrably. What it appears to have bought is a longer and more elaborate admissibility ruling, a thicker gate rather than a faster one. Whether that is a good return depends entirely on which of the two readings above is correct, which is why the question of what a longer rejection is worth is the substantive question this paper leaves open rather than a loose end.

Read as institutionalisation rather than as case management, the resolution looks different again. McGuire (2004) treats staff growth as one of the observable markers by which a court acquires standing and independence, and on that reading the value of the 2003 decision does not depend on the disposition counts at all.

5.2 Limitations

5.2.1 Data

The staffing records cover 2001 to 2005, which restricts the empirical window to the immediate post-reform environment. Consequently, the data cannot establish whether the observed intensity effects persisted, decayed, or expanded once cabinets settled into their larger configurations.

Capacity is constructed from contract start and end dates, which treats clerks as continuously active and abstracts from leave, illness, and informal inter-cabinet assistance. Furthermore, the records capture formal employment contracts alone. If the informal practice of hiring unofficial "consultants" to circumvent statutory qualification requirements lingered into this period, baseline capacity in certain cabinets may be slightly understated.

Finally, ruling length serves as an imperfect proxy for drafting effort rather than legal quality, while average duration remains sensitive to docket-clearing prioritization. A cabinet that systematically clears older backlogged cases inflates the observed duration without necessarily altering case-processing speed or effort.

Moreover, duration measured by decision dates carries the mechanical timing bias documented by Engel and Weinshall (2020), limiting its role to evaluating system speed rather than judicial investment.

5.2.2 Identification

The treatment is a single common date, so the design compares periods rather than treated and untreated Justices, and there is no control group. The flat pre-reform coefficients in the event studies are the evidence that nothing was already under way, and they are the only such evidence available.

The bench turned over almost completely seven weeks before the reform took effect, so the post-reform period is substantially a different set of people. Only nine Justices are observed on both sides and identify the treatment. The balanced subsample addresses this and returns the same coefficient with a larger standard error, which is reassurance rather than proof.

The first-stage F statistic hovers between 5 and 7.5 across specifications, making the instrumented estimates noisy and imprecise. The Hausman tests show that the OLS and IV estimates differ for several outcomes. However, because the effects vary among Justices, this difference doesn't automatically make the IV better. The two methods just weigh the effects differently: the IV focuses on those who took advantage of the rule, while OLS looks at capacity across the board. The lack of precision in the IV estimates is a real limitation. However, the positive direction of the effect is confirmed by other checks—like the reduced form, event studies, placebo tests, and log-transformed specifications—none of which depend on the first-stage regression. The reduced-form evidence and the event studies do not lean on the first stage at all and show the same pattern, and they are the primary support for the direction of the findings. The placebo test adds that no such pattern is present before the reform. The OLS estimates are read throughout as descriptive associations rather than causal effects.

The estimates restricted to merits dispositions carry a limitation of their own. They rest on a small merits base, so they are underpowered, and their null results are weak evidence of no effect rather than a demonstration of one.

Uptake of the new capacity was voluntary and staggered, so the instrument captures permission rather than assignment, and the estimate is an effect of the capacity actually taken up by the Justices who chose to take it up.

5.2.3 Attribution

Every disposition is attributed to the cabinet of the judge rapporteur, which is defensible because the rapporteur's cabinet prepares the case whatever formation

decides it, but it is an assumption and not an observation.

Nothing in the data reveals what happens inside a cabinet. Whether a clerk wrote the additional text, whether the Justice wrote it with time the clerk freed, or whether the cabinet simply adopted a longer template, is unobservable here, and the paper therefore identifies an effect of capacity on output and not an effect of clerks on decisions.

5.2.4 External validity

This is one reform, at one court, in one country, identified over four years. The Czech Constitutional Court has no formal discretionary docket, its Justices serve single ten-year terms with rare exceptions, and its clerks work in personal cabinets rather than a shared pool. Each of these institutional features plausibly shapes the results, and none of them is universal.

The cabinet arrangement is also what makes the empirical design possible. Had the Court assigned clerks to a common pool, the resolution would have merely shifted the court-wide mean, eliminating the within-Justice variation exploited here. Evaluating staffing reforms at pool-organized courts will therefore require alternative identification strategies.

5.3 Further research

The findings and limitations of this paper point to several avenues for future research, addressing questions that have not yet been examined in the Czech constitutional empirical context. First, extending the clerk contract records beyond 2005 would show whether the intensity effect persisted once cabinets stabilized at their larger size, allowing the reform to be studied as a permanent institutional shift rather than a temporary shock.

Second, the central question this paper leaves open—whether the thicker gate represents bespoke legal reasoning or merely absorbed capacity—is empirically tractable. Advanced natural language processing methods, including fine-tuned LLMs, could be deployed to analyze the corpus of admissibility *usnesení* before and after the reform. Systematic text analysis could determine whether the additional characters introduce substantive legal arguments, expand boilerplate recitals, or increase semantic similarity across standardized templates.

Third, the staffing records identify individuals, which invites a deeper qualitative and biographical inquiry. Joining these records to biographical data on clerks' education, seniority, and subsequent careers, alongside qualitative research on how Justices actually select their clerks, would allow the effect of capacity to

be separated from the effect of the *kind* of capacity. The same records would support a related question this paper does not address, namely whether a larger clerk corps broadened the range of professional backgrounds represented inside the cabinets, and whether that breadth is itself consequential for what a cabinet produces.

Finally, future research should explore the boundaries of capacity effects. Testing whether capacity reductions (such as those caused by sudden vacancies or judicial deaths (Yang 2016)) are spent symmetrically to capacity increases would provide a fuller picture of cabinet dynamics. Most importantly, empirical work must eventually ask what these internal shifts mean for the litigants themselves. Whether longer rejections alter anything downstream, such as repeat filings, applications to the European Court of Human Rights, or overall public confidence in the Court.

Conclusion

The Czech Constitutional Court faced a staffing and backlog crisis in 2003, prompting a plenary resolution that tripled the permissible clerk capacity per Justice. This paper asked how a constitutional court allocates additional capacity across its docket when it lacks discretionary control over case inflow. Treating the resolution as a natural experiment, and using it as an instrument for the capacity a cabinet actually held, it estimated what the added hands produced. The reform raised cabinet capacity by roughly seven tenths of a full-time-equivalent clerk, and the answer to the question follows from what that increment was spent on.

The findings sit awkwardly with both theoretical accounts of judicial behaviour under relaxed constraints. The data do not support the hypothesis that added capacity simply buys docket comfort: the point estimates for the volume of disposed cases rise across every specification, but the instrumented estimates are too imprecise to be put forward as a finding, and the stock of pending cases did not demonstrably move. Nor does the evidence establish the opposing expectation that relieved Justices reinvest their freed time in deeper substantive review, although it points in that direction. In proportional terms merits dispositions grew roughly twice as fast as admissibility dispositions, which is the direction reinvestment predicts and the opposite of what docket comfort requires. The magnitude is nonetheless small, moving the share of output reaching a full decision on the merits (*nález*) by about one percentage point.

Instead, the added capacity was absorbed exactly where routine task delegation already occurs: at the admissibility gate. Cabinets utilized the extra hands to draft longer and more elaborate procedural rejections (*usnesení*), some 2,674 characters more against a pre-reform mean of roughly 6,200, an expansion of about two fifths. The total time a case spent between filing and an admissibility rejection rose rather than fell, which is the movement docket comfort rules out, although that interval mixes the cabinet's work with waiting that predates it and cannot be read as effort. This dynamic offers a nuanced confirmation of the broader argument that judicial capacity ultimately shapes court output. However, it demonstrates that in this institutional setting, additional capacity was primarily expended on thickening the procedural filter rather than expanding substantive constitutional doctrine.

These conclusions must be carefully weighed against several structural limitations. Identification rests on the nine Justices observed on both sides of the reform, and a first-stage F statistic between five and seven and a half leaves the instrumented estimates imprecise; the direction of the findings is carried

by the reduced form and the event studies, neither of which leans on the first stage, with the placebo test confirming that no such pattern appears before the reform. The analysis relies on official staffing records confined to the 2001–2005 window, precluding any evaluation of how the reform settled into a long-term institutional equilibrium. Furthermore, because the internal workflow of a judicial cabinet is unobservable, the data capture the relationship between aggregate capacity and output, rather than revealing exactly who authored the additional text. Finally, as a single-institution study focusing on a court with mandatory jurisdiction and single-term Justices, the external validity of these findings remains an open question, inviting future comparative research across different judicial architectures.

Each of those limits is also an opening. Extending the staffing records beyond 2005 would show whether the intensity effect persisted once cabinets settled at their larger size, allowing the resolution to be studied as a permanent institutional shift rather than as a shock. Joining the same records to biographical data on the clerks, and to qualitative evidence on how Justices choose them, would separate the effect of capacity from the effect of the kind of capacity a cabinet acquires. Asking whether losses of capacity are spent symmetrically to gains would establish whether what is documented here is a property of relief or of disturbance in either direction. Least explored of all is what any of this meant for the people who filed the complaints, whether a longer rejection changes repeat filing, recourse to Strasbourg, or confidence in the Court at all. Section 5.3 develops these in full.

What remains open is what a longer rejection is worth. Ruling length counts characters and not reasoning, so the additional text may be an explanation the constrained Court could not previously afford to write, or it may be procedural recital that absorbs the capacity without telling the complainant anything further about why the case failed. The two readings differ in what the 2003 resolution bought for the litigants before the CCC, and separating them requires reading the rulings rather than measuring them. That is the question this paper leaves to the work that follows it.

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A. The Court's position in the Czech constitutional order

The judiciary in Czechia is divided into three subbranches, namely (1) administrative courts, (2) courts of general jurisdiction, which handle civil and criminal cases, and (3) the CCC (Pouperová 2024). The CCC stands outside the ordinary court hierarchy and is not an instance of appeal above the two supreme courts. It is a specialized body of constitutional review in the continental tradition.

The general provisions governing the Court derive from the Constitution of the Czech Republic, hereafter the CCR, specifically articles 83 to 89, which are further elaborated by Law No. 182/1993 Coll., on the Constitutional Court. Article 83 CCR defines the Court as the judicial body responsible for the protection of constitutionality, and the CCA regulates its organization, its proceedings, and the position of its Justices and staff.

In terms of theory, the CCC is a traditional constitutional court that builds and even expands on its predecessor established in 1920. This, at that time, Czechoslovak Constitutional Court was among the first in the world to transform the theoretical Kelsenian model of centralized constitutional review into practice (Ramos 2006). That lineage matters for the present Court in two ways. It anchors the institution in a domestic tradition older than the state it now serves, and it explains why the drafters of the 1993 Constitution equipped the new Court with an unusually complete set of powers. Some scholars argue that the result is one of the most powerful constitutional courts in Europe (Kühn 2013, 246).

Kadlec (2019) argues that the Court possesses nearly all the powers that a constitutional court in a continental legal system can have. Its principal power, characteristic of its position within a civil law system, is norm control. Norm control takes two primary forms. In abstract review the Court assesses the conformity of statutes and other legal acts with the constitutional order independently of any specific case, typically at the initiative of political actors. In concrete review the assessment of a norm arises out of an individual proceeding, most often a proceeding on a constitutional complaint.

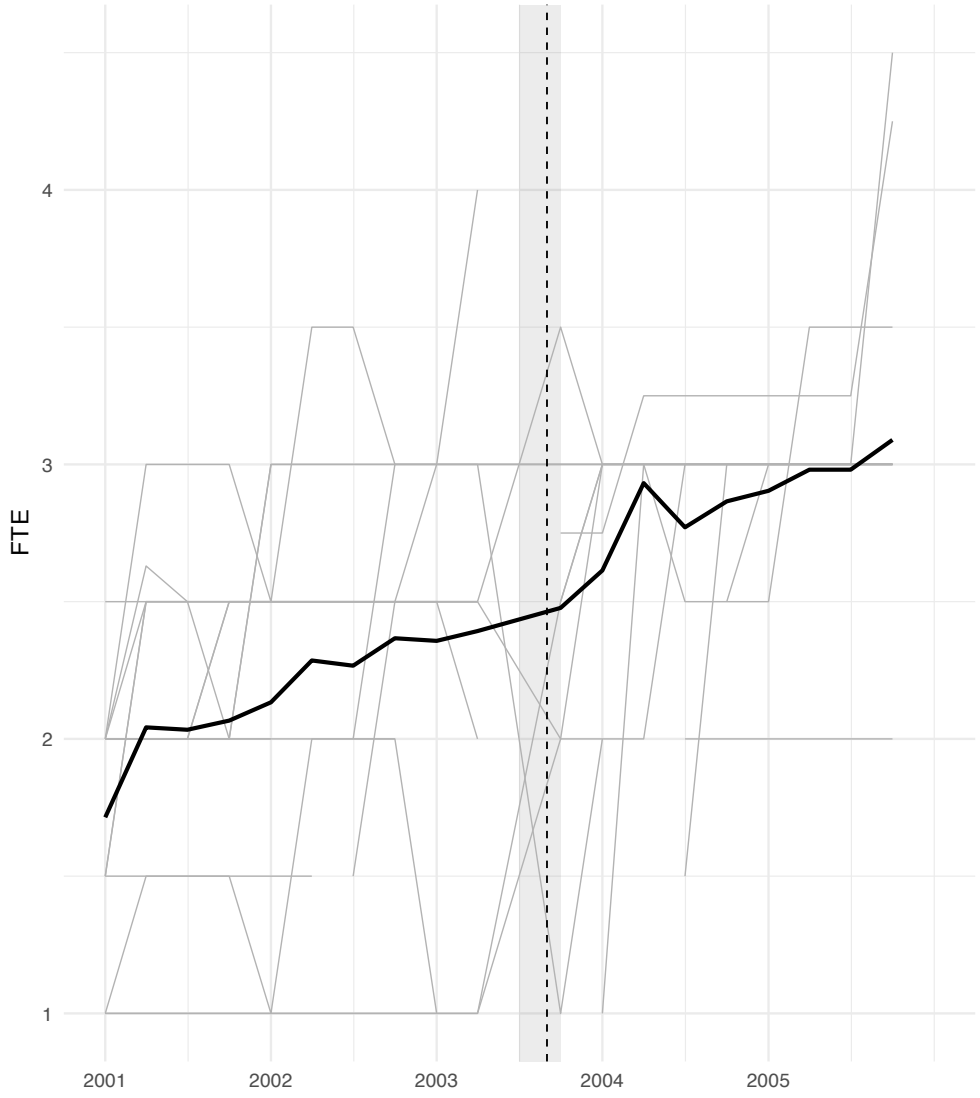
The remaining powers can be mentioned tangentially. The Court acts as an arbiter in jurisdictional disputes between state bodies, exercises specific powers in electoral adjudication, and decides, within the framework of militant democracy, on the dissolution of political parties. Its authority further includes the preventive *a priori* review of the constitutionality of international treaties before ratification and the exclusive power to adjudicate a constitutional action against the President

of the Republic. Taken together, these powers confirm the Court's status as the ultimate guardian of the constitutional order of the Czech Republic.

The appointment process itself has become an object of study. Procházková (2023) examines how the process works as it now stands, from the President's selection of candidates through the Senate's consent. She notes that while President Pavel introduced an expert consultative panel to transparently vet candidates, this formalized framework remains highly vulnerable to political pressure during the Senate confirmation phase. Komárek (2023) criticizes the recent appointment practice under President Pavel for its techno-populist approach, arguing that using an expert panel falsely depoliticizes the process and masks ideological choices behind a facade of objective consensus.

B. Supplementary figure

Figure B.1: Individual capacity trajectories of the cabinets



Note: One line per Justice; the black line is the mean. Uptake of the capacity permitted by Resolution Org. 11/03-3 was staggered and voluntary across cabinets. While identification relies on the timing of the plenary resolution, this underlying heterogeneity across cabinets is what defines the local nature of the instrumental variable estimates. *Source:* The Court's staffing records, author's own processing.